



PARLIAMENTARY DEBATES

OFFICIAL REPORT

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THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

FIRST MEETING, 2026

Tuesday, 24th February, 2026

*The House met at the Chamber,
Parliament House, at 2:28 p.m.*

[THE SPEAKER, RT HON ALBAN
SUMANA KINGSFORD BAGBIN, IN
THE CHAIR]

[PRAYERS]

The Speaker: Hon Members, with your kind permission, let me, on your behalf, acknowledge the presence of visitors from three institutions. Firstly, we have students from the Accra Sempe Junior High School. They are 62 in number and are led by the headmistress of the school, in the person of Mrs Augustina Gyamera. Maybe, the educational sector has changed some of these things, but that is what I was taught. You are most welcome. Madam, we are grateful for your leadership for bringing them.

The number 62 is quite a large number. They are coming from the Odododiodioo constituency, a constituency we all know very well. You are most welcome. Resume your seats.

[Pupils of Accra Sempe Junior High School were acknowledged.]

The Speaker: We have the second group coming from Mount Olivet

Methodist Preparatory School. They are 30 in number and are from the Kpone-Katamanso Constituency. They are led by an official of the National Commission for Civic Education (NCCE) by name Comfort Quainoo. On behalf of the House, I welcome you to today's proceedings. Please resume your seats.

[Pupils of Mount Olivet Methodist Preparatory School were acknowledged.]

The Speaker: The third group is from the Way School Complex. They are 79 in number and come from the Afadjato South constituency. They are led by the headmaster, Mr Daniel Nartey. You are also warmly welcome. This is the House for all of you.

We are mandated to protect your rights and freedoms. So, anytime you are in trouble, this is the House you can run to for refuge. It is the House of might and majesty. So please, start learning it at this young age. As I often say, we expect that when you are here, you will perform better than we are doing. So, you may resume your seats.

[Pupils of the Way School Complex were acknowledged.]

The Speaker: Hon Members, we now move to the item numbered 6 on the *Order Paper, Correction of Votes and Proceedings and the Official Report.*

VOTES AND PROCEEDINGS AND THE OFFICIAL REPORT

The Speaker: We start with the correction of *Votes and Proceedings* of Friday, 20th February, 2026.

Page 1...7—

Yes, Hon Member?

Dr Fred Kyei Asamoah: Thank you, Mr Speaker.

The page numbered 6, the items numbered 4(10) and (15); the Hon Members, Mr Frank Annoh-Dompreh and Mr Vincent Ekow Assafuah were present on Friday during proceedings but they have been marked as absent.

The Speaker: Are the Hon Members present? Mr Frank Annoh-Dompreh, the Hon Member for Nsawam/Adoagyiri, were you present on Friday, 20th February 2026?

Mr Frank Annoh-Dompreh: Mr Speaker, indeed, I was present.

The Speaker: Then the other gentleman referred to was Mr Vincent Ekow Assafuah, Hon Member for Old Tafo.

Mr Vincent Ekow Assafuah: Mr Speaker, I was present on Friday.

The Speaker: Table Office, kindly take note of that. Yes, anymore? So, we move to page 7. Yes, Hon Member?

Hon Members, when you are on your feet, it means you are drawing my attention that you want to address the House.

Page 8...9—

Yes, Hon Member?

Mr Assafuah: Mr Speaker, the page numbered 9, the item numbered 8, sub item 308 reads, “Suke number one (1)”. The “number” should be a proper noun, so the “n” should be a capital letter.

It is a proper noun, so it should be in capital letters.

2:38 p.m.

The Speaker: Hon Member, you are drawing our attention to the spelling of the name “number”, number one and you are saying the number should start with capital “N”. What about “one”?

Mr Assafuah: The “one” can also be capital.

The Speaker: Page 10—

Mr Assafuah: Mr Speaker, on page 10, item numbered 391, “Nalerigu/Gambaga constituency”, the word “constituency” should be a capital “C” for purposes of consistency. And the item numbered 540 on the same page should read, “Tarkwa/Nsuaem Constituency” not constituencies.

The Speaker: Table Office, please take note of that.

Hon Member, are you on your feet?

Ing Surv Maxwell Kwame Lukutor: Yes, Mr Speaker, I need your guidance please. Page 11, under 606 (b); “The Hon First Deputy Speaker directed that the Answers to the following Questions...” — I am not too sure whether Answers and Questions should be in capitals, or small letters, once it is the continuation of a statement.

The Speaker: Yes, in this context.

Ing Surv Lukutor: In this context, yes.

Mr Speaker, thank you.

The Speaker: Page 12—

Mr Assafuah: Page 12, the item c, “The Minister for Energy and Green Transition to answer at a latter date”. Later date, not latter date.

Thank you.

The Speaker: Table Office, the spelling of later. Please, kindly take note.

Page 13...15—

Mr Frank Afriyie: Mr Speaker, on page 15, under the Legal Education Reform Bill, 2025, paragraph 16, I think the first word should be deleted, so we substitute it with a plural version. Given the fact that we did the clause-by-clause

consideration of the Bill, it should be clause 37 to 40.

The Speaker: Table Office, kindly take note.

Page 16, 17—

Mr Assafuah: Page 17, clause 47 (d), line one. After the word “technology”.

Technology should be in inverted commas. The last one is missing.

The Speaker: Table Office, kindly take note of that.

Page 18...20 — Yes?

Ing Surv Lukutor: Mr Speaker, I need your guidance on the final sentence; “The meeting was adjourned at 1 p.m.” Knowing that in our context meeting is something else, could it be corrected to mean the committee meeting was adjourned at 1p.m. so that we do not confuse what meeting means in the general context as against what is being reported here?

The Speaker: Yes, at the Committee level, you meet, and in Plenary sessions, you sit. So, in the context, the proper word is meet.

So, they are right to say the meeting was adjourned at that time. You would realise that when we are dealing with the House, we say “the sitting”. The sitting was adjourned at that time. So, I think it is right because the context is dealing with the Committee on Employment,

Labour Relations, and Pensions. So, there is nothing to change there.

Hon Members, the *Votes and Proceedings* of the twelfth Sitting, dated Friday, 20th February, 2026, as corrected, is adopted as the true record of proceedings.

I have a copy of the *Official Report* of Tuesday, 17th February, 2026. Hon Members, any corrections?

[No correction was made to the Official Report of Tuesday, 17th February, 2026.]

The Speaker: We now move on to the next item. Yes, Majority Leader?

Mr Mahama Ayariga: Mr Speaker, subject to your pleasure, I will crave your indulgence for us to vary the order of Business and go to Presentation of First Reading of Bills for the Value for Money Office Bill to be presented.

Mr Frank Annoh-Dompreeh: Mr Speaker, I heard the Majority Leader loud and clear, obviously coming under Order 67(2). The imperative of Order 67(2) is that he should be seeking your leave, and he is doing that for the Minister for Finance to lay a Paper. I do not know why the Majority Leader appears to be in a hurry. We have missed the Hon Minister for Finance. We have not been seeing him as often as we should. The man is in the House for us to feel him, and you are saying he should just lay the Paper and go.

Mr Speaker, this application does not find favour with us. There are other Businesses that should be prosecuted. The Hon Minister for Works and Housing is here dutifully to attend to his Questions. So let us start with the Questions, at least. He should feel the Chamber a bit. When we are done with the Questions, then we can consider the Minister for Finance.

2:48 p.m.

Besides the point, this is not an urgent matter. After the Questions he could be allowed to lay the Paper. So Mr Majority Leader, I beg you, just take it easy. The Hon Minister is here to prepare the grounds for the President and you do not want him to sit in the Chamber; you want him to leave. We are opposed to that.

The Speaker: Yes, Majority Leader, they are not convinced, so try to persuade them to accept your application.

Mr Ayariga: Yes, Mr Speaker, they are very convinced. You see it in their response. It is a clear indication that they are very convinced. Mr Speaker, when I was a student, I represented Ghana at the Afro-Asian International Moot Court Competition in India. It was the first time I was dealing with Indians. So, the judges on the Bench at that time always shook their heads any time I argued. Anytime I argued forcefully, citing international law authorities, the judges would shake their heads. In advocacy, we take feedback from the body language of the Bench, to have an indication whether your argument is being accepted or not. I forced continuously until my time ended.

Then in the afternoon, I was going to town in their rickshaws at that time, which was the main means of transportation in Bangalore. So, we asked the rider whether he knew a particular place that we were going, and he did this [*The Hon Member shook his head*]. So, the young man said we should alight because he says he does not know the place. He said no but he rather means he knows the place. I said, but he did this [*The Hon Member shook his head*]. They said, no, in India, when you shake your head this way, it means yes. [*Laughter*] So Mr Speaker, I watched their body language and they said that we can take it. [*Laughter*]

Mr Annoh-Dompreh: Mr Speaker, this body language is deceptive, but to the extent that we have always displayed patriotism, we will allow the Hon Minister to perform the Business as he should.

The Speaker: Hon Members, we take item numbered 9, so leave is granted, which is Presentation and First Reading of Bills.

BILL — FIRST READING

Value for Money Office Bill, 2026

AN ACT to establish a Value for Money Office to regulate, monitor, coordinate, promote and develop value for money assessment and provide for related matters.

Presented by the Minister for Finance (Dr Cassiel Ato Baah Forson) (MP). Read the First time; referred to the Committee on Finance and the leadership of the Committee on Economy and Development.

The Speaker: I am told the Minister has a few words to say concerning the Bill. So, I will grant him the opportunity to do so in accordance with our Standing Orders.

Mr Ayariga: Mr Speaker, I thought that would be guided by Order 163(3) which says,

“After the presentation of a Bill, a Member may ask the Sponsor to offer a short explanatory statement on the Bill and the Sponsor shall comply.”

So, my understanding is that triggering Order 163 (3) has to be by a Member. A Member may make a request. So Mr Speaker, I think that we should go by Order 163(3), where I hereby make a request for the Minister for Finance to give us a short explanatory statement on the Bill that he is sponsoring. Thank you, Mr Speaker.

The Speaker: Yes, Hon Habib?

Alhaji Habib Iddrisu: Mr Speaker, I was thinking that Order 163(3) would be invoked by any other Member, not the Leader of Government Business. Is it the case that the Leader of Government Business does not have an idea of the reason the Minister is bringing this Bill to the House? Mr Speaker, if it is the case that the Majority Leader has no idea or clue about the Papers his Ministers are laying, then I am surprised. I think we should have been asking that but if the Majority Leader and the Leader of Government Business is invoking order 163(3), then it speaks for itself that the Majority Leader is not being consulted. He is not in the know of anything that is going on in the Government.

The Speaker: Is this a matter that should be debated?

Hon Members, by the Standing Orders, you do not even need a Member to raise the issue. Even though Order 163(3) says so, the person laying could *suo motu* also make statements on the Bill that the person is presenting. So, it is proper that “a Member” includes leadership or whatever. What the Majority Leader has done is right. I will allow the Hon Minister for Finance to say a few words.

Minister for Finance (Dr Cassiel Ato Baah Forson) (MP): Mr Speaker, the Value for Money Office Bill, 2026 seeks to address chronic inefficiencies in the public financial management system, particularly those arising from inflated contracts, abandoned projects, cost overrun, and wasteful spending. By institutionalising a value for money framework, this Bill aims to ensure that every cedi spent by the Government delivers the maximum possible benefit to citizens in terms of economy, efficiency, effectiveness, equity, and sustainability. Furthermore, the establishment of the Value for Money Office will create a specialised and independent oversight institutions with the technical mandate to conduct value-for-money assessment, issue value-for-money certificates before major contracts are awarded, monitor compliance, and ensure sanctions where violations occur.

The overarching objective is to ensure fiscal discipline, reduce waste, promote public confidence, and strengthen the governance and accountability architecture of the country. Mr Speaker, the Bill also seeks to institutionalise value-for-money oversight and transform the public financial management landscape of the country by reducing contract inflation and wasteful expenditure and ensuring uniform pricing across government.

Mr Speaker, finally, this Bill seeks to strengthen fiscal discipline and accountability, enhance public trust and investor confidence, and align Ghana with international best practices in public financial management.

Mr Speaker, globally, countries such as United Kingdom, Canada, Singapore, Slovakia, and United States have established statutory framework on value for money. In the UK, for example, they have established the National Audit Office for value for money. Canada, for example, has established the National Money Audit Manual under the Ministry of Finance as an independent body. Also, the United States have established the National Accountability Office for value for money to ensure optimal use of public funds. Mr Speaker, so Ghana seeks to follow same and to ensure that every cedi counts in the award of government contract. I so submit. [*Hear! Hear!*]

The Speaker: May we now take Questions? Item numbered 7?

2:58 p.m.

Mr Frank Annoh-Dompreh: Mr Speaker, Leadership has consulted, and to that end, may I come under Order 67 (2) and seek your leave to vary Business so that we may take the item numbered 8, a Statement which stands in the name of the Minority Leader, after which, we will revert to the item numbered 7.

The Speaker: Leadership of the Majority?

Mr Ayariga: Mr Speaker, I thought that earlier the Frontbench of the Minority wanted to spend time with the Minister for Finance in the Chamber. Now, the Minority Leader is in a hurry to make a Statement and leave the Chamber.

Mr Speaker, I think that he should wait, so long as the Minister for Finance is here, he can spend more time with him. I think his Statement can wait. The Minister for Finance is not going anywhere, so they can have more time together. The Minister for Works and Housing has many other things to do. So, let us have the Minister for Works and Housing answer the Questions so that the Minority Leader can have more time with the Minister for Finance.

Mr Annoh-Dompreh: Mr Speaker, this is one of the things I admire about

the Majority Leader. This is a very good agreement that we should pursue. Yes, we want him to be here. This is not a matter we should litigate further. A while ago, we staged a good compromise for him. Why is he doing this? He should be fair to us. The Minister for Finance should stay. I think the Majority Leader is in agreement.

The Speaker: Hon Members, the item numbered 8—Statements. Our attention is drawn to a Statement to be made by the Minority Leader. Let us listen to that Statement; I am told it is a short Statement. After that, we will take the Questions.

STATEMENTS

Death of Mr Charles Amissah due to Unavailability of Hospital Beds

Minority Leader (Osahen Alexander Kwamena Afenyo-Markin): Mr Speaker, thank you for the opportunity to make this Statement, and let me thank Colleagues in Leadership for this treasured space.

Mr Speaker, I rise on this solemn occasion to lay before this House a matter that cuts— *[Interruption]*

The Speaker: Hon Member, is this occasion solemn?

Osahen Afenyo-Markin: Mr Speaker, to the extent that the matter I am raising is because somebody died.

The Speaker: You are yet to talk about the subject matter, and the occasion now is the Sitting of— Please.

Osahen Afenyo-Markin: Mr Speaker, that is so.

Mr Speaker, I rise in this Chamber with a heavy heart, weighed down by grief, with a spirit stirred by righteous indignation and with a profound sense of national covenant broken. We must today confront a truth as painful as it is undeniable. Our health care system, the sanctuary to which citizens flee in their most fragile hour, failed. It failed catastrophically and fatally.

Let me be emphatic. This is not a partisan matter. Therefore, this Chamber must not descend into the usual theatre of political point scoring. It is not about the National Democratic Congress (NDC) nor the New Patriotic Party (NPP). This transcends political advantage. This is about a human being, a young Ghanaian citizen. His name was Charles Amissah, a 29-year-old man in the prime of his life, reportedly employed by Promasidor Ghana Limited, who, by every moral and legal right, should be alive today. Instead, he perished. He died in the back of an ambulance, virtually on the streets of our capital city, because the institutions mandated to protect life turned him away.

Mr Speaker, on 6th February, 2026, Charles Amissah was involved in a hit-and-run accident at the Circle Overpass. At 10:32 p.m., ambulance 15 received a distress call. At 10.33 p.m., it mobilised. At 10.35 p.m., it was on site. Let the

record show that the Ghana Ambulance Service performed its duty with professionalism and dispatch. They found him bleeding profusely. They assessed him. His vital signs were recorded: blood pressure, 120/90. Pulse was 100 beats per minute. Oxygen saturation was 99 per cent. These were the vital signs of a living man, a man with a fighting chance. They stabilised him, controlled the haemorrhage, and rushed him to the “Gates of Hope.”

But hope, Mr Speaker, was met with a closed door. At the Police Hospital, they were told, “no bed”. At the Accra Regional Hospital, Ridge, the answer was the same: “no bed”. At the Korle Bu Teaching Hospital, our premier medical facility, they were rejected again. Let us be clear on what this means. None of these facilities conducted triage. No vital signs were even taken. Charles Amissah remained in that ambulance, his life ebbing away while the institutions established by the Republic of Ghana to save him refused to receive him. After approximately 30 minutes of this shameful odyssey, he went into cardiac arrest. Despite the effort of the ambulance crew, cardiopulmonary resuscitation (CPR) yielded no response. He was pronounced dead. A life extinguished, not by the initial accident, but by a systemic failure of the state.

Mr Speaker, this House must be particularly outraged because this was not merely an accident of circumstances; it was a direct violation of state policy. In 2018, under the leadership of the then Director-General of Ghana Health Service, a clear directive was issued

explicitly prohibiting the denial of emergency care on the basis of bed availability. The directive was unequivocal. It mandated immediate triage, stabilisation, and the use of alternative surfaces, couches, tables, wheelchairs, and where beds were unavailable. The principle was and remains simple. Stabilise first. Resolve bed logistics later. In the case of Charles Amissah, that principle was abandoned, and the man died as a result.

Mr Speaker, before I proceed further, it is right and proper that we pause. We must look beyond the policy failures and statistics and see the face of a young man who we have lost. I wish, on behalf of my Side of the House, and I believe I speak for every Hon Member present, to extend our deepest, most heartfelt condolences to the family, friends, and colleagues of Charles Amissah, who now face an unthinkable void. To his siblings, his loved ones, and his colleagues at Promasidor Ghana Limited, we share their immeasurable grief. Nothing we do here today, Mr Speaker, will bring Charles back, but let it never be said that this Parliament heard of such a tragedy and remained unmoved. This is the reason I am grateful for this treasured space to make this Statement.

Furthermore, Mr Speaker, while we hold our public institutions to account, we must not lose sight of the fact that this tragic chain of events was set in motion by a cowardly act.

3:08 p.m.

A hit-and-run driver struck down Mr Charles Amissah and fled the scene, leaving him for dead. I therefore call upon the Ghana Police Service to deploy every resource, every investigative technique, and every intelligence capable at their disposal to track down and apprehend this individual. Justice for Mr Charles demands that the person whose reckless actions precipitated this nightmare be found and made to answer fully before the law. Let them know that the long arm of the Ghanaian state will not tire until they are brought to account.

Mr Speaker, I respectfully invite this honourable House not to be silent over this. We must act now. We are informed that the Ministry and the Health Facilities Regulatory Agency (HeFRA) have launched investigations. We welcome these actions, but let no one mistake Executive inquiry for parliamentary oversight. Under Article 103 of the 1992 Constitution, this House has the primary duty to investigate matters of public importance and to expose inefficiencies and maladministration.

Therefore, in all humility but with firmness of mind, I call on the Committee on Health to be immediately empowered to do the following, and Mr Speaker, with your directive:

Firstly, summon the chief executive officers and heads of emergency units of the three hospitals involved; secondly, demand production of triage logs, duty rosters and bed occupancy records for

that night; thirdly, establish conclusively whether the 2018 Ghana Health Service Directive was breached; and finally, determine whether professional misconduct or negligence occurred. If misconduct is found, sanctions must follow. If negligence is proven, prosecution must follow. If a systemic failure is identified, comprehensive reform must follow.

Mr Speaker, let me leave the House with these final thoughts. If a young man can be carried from one public hospital to another, refused at every door until he dies, then the social contract is broken and none of us, I repeat, none of us is safe, and neither the rich, nor the poor, nor the politician, nor the ordinary man on the streets.

Mr Speaker, the death of Mr Charles Amissah must force this nation to change. Human life cannot be subordinate to administrative convenience. An emergency cannot be optical. Our hospitals do not have the moral or legal discretion to abandon the dying.

Mr Speaker, I so humbly submit. Thank you so much indeed.

The Speaker: Yes, thank you so much. Hon Members, this is an important Statement and is of serious public interest. So, let us take it as such and give the proper lead and further investigation into the matter.

Please, Deputy Minister for Health?

Deputy Minister for Health (Dr Grace Ayensu-Danquah) (MP): Thank you, Mr Speaker, for giving me this opportunity to comment on the Statement made by the Hon Minority Leader.

Mr Speaker, the death of any Ghanaian in this matter is unfortunate. I would like to take this opportunity to extend my heartfelt condolences to the bereaved family and the loved ones of the deceased and also to the entire nation.

Mr Speaker, I am the Deputy Minister for Health and also a traumatologist. In other words, I am trained as a trauma surgeon specialist and consultant. The event that led to this unfortunate incident and the demise of the gentleman is tragic and should not have happened. In surgery, we call this a “never event”. A never event is an event that should never happen. Under no circumstances should a human being die this way; however, governance is a continuum.

Mr Speaker, as the Hon Minority Leader said, the Ministry has constituted a committee that is looking into the issue. In fact, they met today. We have also done preliminary inquiries. As we all know, I believe that the management of Korle Bu Teaching Hospital has also independently interdicted some of the workers who were in the emergency room that night. However, the conditions under which the current Government came into running the country were rather dire when we talk about our health system.

Mr Speaker, the previous government started the Agenda 111 Project, and at the end of eight years, there was not one single hospital. *[Interruption]* I am not engendering debate. I am just trying to explain the circumstances.

Mr Speaker, on Agenda 111, at the end of eight years, there was not a single hospital that was operational. In fact, what we came to meet were multiple hospitals littered around the country with some of them at the foundation level. There was not one hospital that a human being could walk into; however, they had spent millions and billions of Ghana cedis. To the extent that the Auditor-General surcharged 35 contractors GHC 7.9 million, and the refund that the Auditor-General surcharged —

The Speaker: Hon Deputy Minister, please focus on the major issue.

Dr Ayensu-Danquah: Thank you, Mr Speaker. I am guided.

Mr Speaker, the current government is serious about what is happening in our emergency rooms. We have constituted a committee that is looking into it. We are collecting data as to what is actually happening in our emergency rooms.

Mr Speaker, the issue is multifaceted. Is it the pre-hospital, the ambulance, the pre-hospital care, or is it indeed what is happening in our emergency rooms?

Mr Speaker, regarding the Ambulance Service, we have 30 ambulances currently parked. In the last five years, the Ambulance Service personnel have not been recertified. The ambulance was there because of its proximity to the Ambulance Service. They got there on time, and they did what was necessary.

Mr Speaker, the no-bed syndrome, unfortunately, is not a new issue. This issue has existed for so long, and unfortunately, the previous government was not able to fix it.

Mr Speaker, the John Dramani Mahama Government is going to take a bold step to solve the problem of no-bed syndrome. We are going to re-tool the hospitals, starting from the Community-based Health Planning and Services (CHPS) compound to the health centres, all the way up to—

Mr Ayariga — *rose* —

The Speaker: Majority Leader?

Mr Ayariga: Mr Speaker, they requested to make a Statement. I knew that this Statement would raise issues, but at Conclave, you said we should have it. Now, he has made a Statement, and she is commenting on it. Mr Speaker, just imagine the level of noise that is emanating from the other Side. Mr Speaker, can you imagine someone using the word “very insensitive”?

The Speaker: Hon Members, please, let us listen to each other.

Mr Ayariga: Yes, we need to listen to each other. They may think it is insensitive. They were talking about no-bed syndrome. What does no-bed mean? It means they did not construct enough hospitals and provide enough beds; that is what no-bed means. They may disagree with her, but that is her view; that this is the underlying cause of the problem. The hospitals do not have the beds, the space and the capacity, because they promised and did not deliver. They may disagree with her, but that is her view.

Please, let us listen to each other.

Dr Ayensu-Danquah: Thank you, Mr Speaker —

3:18 p.m.

The Speaker: Hon Members, we agreed that we will take three from each Side of the House. So, kindly wait when it is your turn, then you can put across your views. But Hon Members, I thought we agreed on some key issues. You are a Deputy Minister for Health. Do you need a bed to attend to emergency situations?

Dr Ayensu-Danquah: Thank you, Mr Speaker. By definition, an ambulance itself is a bed. An ambulance is what we classify as a step-down unit. The cart in the ambulance can be considered a bed, so in such cases, a patient can be treated in the ambulance.

The Speaker: Yes. Even outside the ambulance, on the chair; even at the ward, do we need a bed to attend to an emergency?

Dr Ayensu-Danquah: No, Mr Speaker, the patient can actually be treated—

The Speaker: Let us move on. Let us focus on the issues.

Dr Ayensu-Danquah: Yes. That is why we have constituted a committee to look into it, and that is why, Mr Speaker, we are retooling the ambulance service. It is because they need to have the proper equipment in the ambulance. It is not just the bed, Mr Speaker. It is the bed, the oxygen, the intravenous (IV), the IV infusion itself, the monitors and everything in the ambulance,

Mr Speaker, an ambulance is not just a transportation device. Mr Speaker, we are retooling the ambulances—

The Speaker: Hon Deputy Minister, I was a Minister for Health. I know what I am talking about. Please focus on the issue. The reason was that no bed. That is what we have been told. So, focus on that. You have done well by establishing a committee to investigate the issue. So, let us look at it seriously.

Dr Ayensu-Danquah: Thank you, Mr Speaker. As a Ministry, we are taking every step to ensure that such situations never happen in the country. Mr Speaker, we are retraining our emergency services staff. We are both training the doctors as well as the staff. We are even training the security in the emergency rooms. We are also extending this into the ambulance service itself. We are going to ensure that all the ambulances have the necessary equipment to save precious Ghanaian

lives. This patient could have probably been saved if we had the proper supplies in the ambulance. We are working diligently to avoid such needless deaths of any Ghanaian.

In conclusion, Mr Speaker, again, I would like to express my heartfelt condolences to the family and I would also like to express my condolences to the rest of the country. Under our Government, such incidences would not happen. Thank you.

The Speaker: Hon Members, can we take two more from this Side of the House? Yes, Hon Kojo Oppong Nkrumah.

Mr Kojo Oppong Nkrumah (NPP — Ofoase Ayirebi): Mr Speaker, I am grateful for the opportunity to comment on this Statement, and I join Colleagues in expressing our condolences to the family of *Charles Amissah* for this tragic loss. I also associate with the calls for a proper investigation to establish exactly what happened.

Mr Speaker, also, let me, on behalf of Members of Parliament who may feel like associating with this call I am about to make, apologise to the family of Charles Amissah for the comments that have just been made by the Deputy Minister for Health which, in our view, attempts to politicise the matter. This is a matter of a tragic death, a matter that has now been announced as a subject of an investigation. There should be no basis for which, at this time, there are attempts to suggest that it is because the immediate past administration did not

finish Agenda 111 buildings or EMTs have not been certified. If we descend into that arena, Mr Speaker, we may be tempted to ask what the administration before the last one also did about that. I am not sure what Ghanaians want to hear us talking about today is an attempt to be doing partisan exchanges on this. What is important is that this investigation is done and is done in a credible manner. What is important is that if some wrongdoing is found, the persons who would have engaged in it are held culpable. More importantly, Mr Speaker, is an assurance that going forward, the emergency health processes that should take place in our health facilities across the country are very strongly observed.

But, Mr Speaker, this happened in a very urban area where medical facilities are available, where medical personnel are available. Can we imagine what is happening in many of the rural communities where facilities and personnel are in short supply? So, across the aisle, we have to commit ourselves to ensure that no cedi should be spared in ensuring that facilities and personnel are made available across the country to be able to attend to the health needs of our people.

Mr Speaker, once again, we would extend our commiseration to the family of Mr Charles Amissah, but this should not be a matter that is politicised in any way whatsoever. Thank you, Mr Speaker, for the opportunity.

Mr Frank Afriyie (NDC — Afadjato South): Mr Speaker, I am so grateful, and just like my Colleagues, I

would also like to use the opportunity to extend condolences to the bereaved family and to wish them God's strength in this moment of grief. Mr Speaker, at the heart of this whole thing, partly, is the response that we often receive from our health practitioners. I recall during last Meeting, one dawn I woke up to prepare for a television show, and suddenly I blacked out. I was fortunate my son heard the extent to which I fell and moved from his room to come to our master bedroom. He managed to wake my wife up. They lifted me to one of the foremost health facilities in this country. Mr Speaker, when we got there, my younger brother went in and drew their attention. They just told him to send me to another place. It took my wife to tell them that the man lying in there is a Member of Parliament (MP). They then rushed in. So, the kernel of this issue sometimes is that the discrimination by these professionals. The discrimination they offer tends to make you and I, Mr Speaker, victims before the general public. I listened to a radio broadcast this morning, and none of us was spared. Mr Speaker, not even yourself. The public holds an erroneous view that we are not doing much. Meanwhile, we are doing at least the best we could under the circumstances. But the response that comes from some of our practitioners, leaves much to be desired, and that is what we must focus on.

Mr Speaker, I think that the next thing for me has to do with the fact that we have overly concentrated our health facilities in Accra. And so be it professionals, equipment and tools, most of them are here. So, everything that

happens in the other 15 Regions must come to Korle Bu or the University of Ghana Medical Centre (UGMC), and so it makes these professionals also overstretched. Governments must relentlessly look at that angle.

I am happy and delighted to know that at least under the administration of H.E. John Dramani Mahama, during his first tenure, he demonstrated an unwavering commitment to expanding some of this infrastructure. It is not enough. We must admit that we need to do more. We must engage and carry the public along and show that we are not a ruling class that is only interested in travelling to London, Germany, America, and other places to for medical treatment. But then we are doing our bit, and we must win their confidence. This issue must not be left to go unchecked. I thank the Ministry and the Government for swiftly instituting, an investigation. The outcome must be brought in real time so that we take decisive steps to ensure that this does not rear its ugly heads.

Mr Speaker, I thank you so much for this opportunity.

3:28 p.m.

Dr Fred Kyei Asamoah (NPP — Offinso North): Thank you, Mr Speaker. I would like to commend the maker of the Statement, Osahen Alexander Afenyo-Markin, the Minority Leader, regarding the passing of Charles Amissah. Let me also express my deepest condolence to his family.

Mr Speaker, it saddens my heart because just about three months ago, in my constituency, when I was called by the Police Commander that there was an accident that happened on the Kumasi-Tamale Highway, specifically between Nkenkaasu and Akumadan. Right away, we were told some people had passed, so we had to rush to the hospital. I am happy to commend the director of the hospital because the facilities there were not enough. Patients were treated at the outpatient department and they had to improvise. Any of us could have a cardiac arrest, and between three to five minutes, if we are not saved, we could pass. As such, our healthcare system should have a robust protocol that we use in managing health crisis or emergencies.

We should not make excuses for a life lost. That is why, the former President said, we know how to bring back the economy, but we do not know how to bring back life. Any single life that is lost can never be brought back. This is not a time, as a House, to debate, but it is a time for us to improve on what the previous government started. If the previous government started constructing hospitals we should help.

The case I am referring to, in Nkenkaasu they do not have an emergency unit, so I am using the small 5 per cent allocated to the Common Fund to build a small emergency unit to support the system. Mr Speaker, there is no way one can say that we should have the same facilities we have in Korle-Bu Teaching Hospital in a village in my

Constituency. But there are protocols that healthcare systems should have. The staff should be well-trained to understand what time to refer patients. But the excuse that because there are no beds people cannot be treated is not tenable. I believe if, for instance, our ambulances are not running, what is the Government doing to make sure we maintain these ambulances, that they are fit for purpose, and that they are working, Mr Speaker?

The Speaker: Hon Members, do not go into those issues, because there is no government that has come to govern this country, and has all ambulances working and running at all times. Even during the reign of the person you quoted, it was the same thing. That quotation was wrong. Please, when you lose an economy, you lose lives. Do you not know that? So, when you say you know how to bring back economy, but you do not know how to bring back lives, by the time you lose the economy, you would have lost so many lives that you cannot bring back. Please, let us address the issue that is confronting us now, and stop the politics.

Dr F. K. Asamoah: Thank you, Mr Speaker. Respectfully, I do not intend to debate Mr Speaker. But Mr Speaker, the point I am trying to emphasise is the fact that every single life matters. Whatever thing possible our healthcare system can put in place with respect to the limited resources that we have as a country, how best we can efficiently allocate them, and make sure that all staff and logistics that are in place are put to good use should be done. Because, Mr

Speaker, it could happen to any of us. We know this is an issue of hit and run, which I believe the law will take its course. But also, let us assume this same thing had happened in another village, where there is no big hospital. What is the protocol? In every hospital that I know, Mr Speaker, there are protocols that one has to follow. Are we making sure that all our healthcare professionals, or even Members of Parliament, are taken through CPR and such trainings? Basic things that even with our limited resources, we can still make use of.

Mr Speaker, we know healthcare facilities within the villages are not that bad. Healthcare professionals are able to improvise, because they have been given more detailed training, and have been trained that every life matters. We do not want to play with the life of anybody or do politics with the life of anybody, but we want to work on it. As a House, now that such a thing has happened, I am also in support of the fact that we should institute a Committee that will look into the issue of Charles Amisah, so that another incident like that of Charles Ammisah's does not happen to anybody, or any Member of this House. Mr Speaker, with these few words, I thank the maker of the Statement.

Prof Titus Kofi Beyuo (NDC — Lambussie): Thank you very much, Mr Speaker, for the opportunity to contribute to the Statement. Let me also express my deepest condolences to the family of the late Charles Amisah on behalf of all of us, and in particular, on behalf of the board and management

of the Korle-Bu Teaching Hospital. Mr Speaker, I also want to thank the Minority Leader for this Statement. It is very timely, and he has set the tone for us to really examine the issues.

Permit me to take us a bit down memory lane, to remind us of something that is not too pleasant. In June, 2018, there was a 70-year-old man, Mr Prince Anthony Opoku Acheampong, who died after visiting seven hospitals, including a hospital that his company supplied stationery to. He was the CEO of a stationery company, and they supplied stationery to this hospital which turned him away. The explanation or excuse was the same. The then Minister for Health did his best, constituted committees to ensure that this will never happen again. Unfortunately, eight years down the line, this time we have a younger and strong person, an engineer, losing his life to a similar circumstance. It is very unfortunate.

But Mr Speaker, when we say “no bed” in the hospital, what actually do we mean? “No bed” could mean that there is no physical bed at the Emergency. It could also mean that there is no blood, if the managers anticipate that that patient will need blood, so they want the person to go elsewhere. It could mean there is no particular skill. For instance, an anaesthetist is not there, and they think that that patient will require surgery. It could mean there is no theatre space. It could mean there is no oxygen in the hospital or there is no bed in the Intensive Care Unit (ICU), but they think that the patient needs ICU care. It could mean there is no bed for a

stroke patient, therefore they are telling them that there is no bed because the person has a stroke. There is no doctor at this moment, so there is no bed.

Mr Speaker, the most disappointing part is that no bed could simply mean that the staff are not willing to work, and that is the very sad part. “No bed” could mean that a shift is about to end and someone is not willing to admit a new patient and do all the documentation, so they turn the patient away. “No bed” could mean that the doctor is afraid to work or is tired and feels that if he touches that patient and the patient passes away, duty of care is established legally because he has touched the patient, so see no evil.

3:38 p.m.

He has not touched that patient, so we cannot blame him for it. But is it right that a patient dies in the precinct of the hospital, at the entrance to the emergency, waits there for 30 to 45 minutes, and they say that because they have not seen that patient, no duty of care is established? The legal brains will have to help us out.

Mr Speaker, the causes of “no bed” in this country have been established by previous committees under the former Minister for Health, Hon Kwaku Agyeman-Manu, and I worked on that committee in my former capacity as the General Secretary of the Ghana Medical Association. We all contributed to it, but still, the attitudinal problem and a few other factors have brought us this far. We can group the causes into structural,

functional, and attitudinal. If we talk about structure, the World Health Organization (WHO) recommends that we should have about two to five hospital beds per 10,000 population. In Ghana, we have 0.9 beds per hospital population, so practically, it can be that our beds are inadequate. When we go to the functional issue, we can say there is no bed in the emergency, but there may be a bed in another ward. It is just an attitude of transferring a patient to that ward, so we can create space, and people are not willing to do that.

Mr Speaker, as mentioned earlier, Korle-Bu Teaching Hospital, where I preside as the Chairman of the Board, was the last place that this man had his last breath, and we are very sorry about this. We have taken our own measures, we have interdicted four staff, and we have set up a committee to investigate. The Hon Minister for Health, as alluded to by the Deputy Minister, has also set up a very high-level committee, headed by the revered Prof Agyeman Badu Akosa, and they are working to see the exact cause of this particular incident. But I am also proud to announce that to bring a comprehensive solution, building on the efforts of previous Ministers, the current Minister for Health has already set in motion a team to solve this situation comprehensively. And they are coming out with a document that will look at a National Integrated Bed Management and Referral Coordination System. This will be backed by Information Technology (I.T.), and it is going to allow us in real time to be able to tell the categories of beds that are available in a particular hospital. Whether there is a no-

stroke bed, an Intensive Care Unit (ICU) bed, a bed for a pregnant woman, or a bed for a child; this work has been ongoing. It is unfortunate that while it was in its final weeks, this incident happened.

The Hon Minister has asked the group to quicken up their work so that he can make a major announcement on this to bring a comprehensive change that will help us. It will rope in the Ambulance Service, so that when the ambulance picks up a patient, they would not ask the patient or their relative, or a doctor in a small private hospital: “Can you tell us which hospital is willing to accept this patient?” This is the current situation. I have had calls from a lot of Colleagues here; they need a patient moved to Korle-Bu, and the response would be that there is no bed at the Korle-Bu Emergency unit. But when I call, there will be a bed. Why? So, this is the solution the Minister is bringing, and I am pleading that Parliament will give the Minister all the support needed, so that this problem can be solved once and for all.

Mr Speaker, I will conclude by saying that our Ambulance Service, by its Acts and functions, may also need to be reviewed. Currently, they do scoop and run. What it means is, at an accident scene, they can pick one up, but they cannot even set a simple Intravenous (IV) line to give one fluid. For this patient who was being moved from hospital to hospital, if a simple, normal saline was running, this patient could have survived. The Minority Leader mentioned his Blood Pressure (B.P.) at

the beginning. At Korle-Bu, when they checked the BP in the ambulance monitor, it had come down to 84/56 mmHg. That is someone who is just about dying. So, if they could at least set a line and run some fluid in transit, a lot of patients would survive. So, the model that allowed them to only scoop and run must be changed. Their training must be upgraded so that they have paramedics who are specialised to be able to provide some basic care.

But in conclusion, attitude is our biggest problem. All of this will not change if their attitude does not change. May I stand on this to appeal to my colleague health workers, look at that next patient; it could be you, it could be your father, or it could be your mother. It does not have to be another doctor calling you before you create a bed and accept the patient. Because the one who can call maybe you, maybe the one unconscious, who will then call on your behalf?

Mr Speaker, thank you. [*Hear! Hear!*]

The Speaker: Hon Members, I think Leaders want to contribute—Hon Habib Iddrisu?

Hon Members, attitude— He is not only referring to the health personnel. [*Laughter*] Please, let us allow our Leaders to make their contributions.

Alhaji Habib Iddrisu (NPP — Tolon): Mr Speaker, let me first of all commend my Colleague. He spoke with patriotism, deep knowledge, and

professionalism of the Sector. He is the Deputy Minister for Health who never was. Mr Speaker, listening to him brings me back to the conclusion of the Maker of the Statement. The Maker of the Statement concluded by saying:

“If a young man can be carried from one public hospital to another, refused every door until he dies, then the social contract is broken, none of us is safe; not the rich, not the poor, not the politician, not the ordinary citizen.”

Mr Speaker, situations like this call for a deeper reflection. It calls for consensus-building, not to politicise the entire situation. I want to note that when we are given an opportunity, either as a Minister or a Deputy Minister, and a Statement is made with regard to a sector, any comment we make can be interpreted to be the knowledge or the position of the Government with regard to that sector. Mr Speaker, I was happy that you drew our attention to when you were the Minister for Health, the number of ambulances we even had in the country was somewhere around 57.

So, I want to call on the Deputy Minister and the Minister for Health that when a Statement of this nature is made on the Floor, we should not always be in a hurry to politicise the whole issue. It is very sad that if one goes into an emergency ward, one will be told that there is no bed, and, for that matter, one will lose one's life.

3:48 p.m.

This is not the Ghana we all yearn to build. This is not the health infrastructure or the health priorities we want. Mr Speaker, healthcare is a fundamental human right, the right to access proper healthcare, and it is one's right to live. So, if the negligence of someone or the excuse that there is no bed will lead to the loss of life, it is something we all have to condemn.

I also support the call by the maker of the Statement that we should build the capacity of the Committee on Health to be able to engage the management of these facilities so that we can build strong institutions, so that nobody dies due to the excuse that there is no bed.

Mr Speaker, I thank you so much.

The Speaker: Yes, Hon Majority Leader.

Majority Leader (Mr Mahama Ayariga): Thank you very much, Mr Speaker.

Mr Speaker, I speak as someone who is alive today because when I had a similar emergency, the system worked for me. I had an accident somewhere in Nasia, around 4:00 a.m. I was struggling to get to the nearest hospital because even though I had no scratch on my body, the impact was so great that I thought something wrong must have happened to me. By some divine occurrence, an old Peugeot, which the villagers used to attend market early in the mornings was passing. It had eight

passengers. I pleaded with them to open the boot of the car so that I would sit in the boot. Indeed, they came down and struggled to remove their spare tire and shift the spanners so that I could sit in the boot with my legs hanging outside. I insisted I must get to the nearest hospital.

Luckily, a brand-new pickup arrived there, and written on it was Navrongo Medical Centre. They stopped and checked. They mentioned my name and I was the one. They recognised me and asked what was wrong and I said I had an accident. It was around 5:00 a.m. So, they picked me and sped from Nasia to Tamale. By the time we arrived at Tamale Teaching Hospital, the health personnel were all ready, waiting for me because one of our Colleagues, the late Alhaji Limuna Mohammed Muniru, was then the Regional Minister and had called the hospital ahead of our arrival.

Mr Speaker, our Colleague here, Dr Anabah, was an anaesthetist. They transfused me with seven pints of blood that morning. They performed a surgical procedure on me, and apparently, I had started suffering from internal bleeding, from Nasia till Tamale Hospital, a journey of about two hours, I was bleeding internally. The doctor said if they had delayed for 30 minutes, by now, perhaps— Dr Anabah is a Colleague in this Chamber. Hon Muntaka was a Colleague at the time. Mr Speaker, I speak as somebody who was kept alive because the emergency ward of a hospital worked for me, and it must work for everybody, every citizen.

In some jurisdictions, their citizens would have been outraged. There would have been public outrage. Not the type that I see happening, that an accident victim was moved from hospital to hospital, and the medical personnel there refused to treat it as an emergency. It says everything about us as a country: the indiscipline, the disregard for human life, the lack of fellow feeling, that we do not see that this is a fellow Ghanaian, to whom, whatever we are doing, we must stop and attend to, otherwise, a life will be lost. We must be outraged about a thing like this.

Mr Speaker, I believe that we must get to the bottom of matters like this, and I thank my Colleague for bringing the matter up. I think that at all times, this Parliament must hold those responsible for such conducts to account. We talk about it, and then we leave it there. It happened in 2018. What happened? What did we do? How did those accountable fare at that time? This is what those who have done it today will be inspired by. They will talk; they will do nothing. We want to see action this time. We want to see people held accountable so that the rest of the health personnel across the country will know that this Parliament will not sit idly by while the negligence of some people leads to the loss of life such as what we have seen. So, I thank my Colleague for raising it.

Mr Speaker, I do agree with him that even though Government says it is setting up a committee to look into it, this Parliament should be interested in what happens. So, our Committee on Health

should follow up on what Government is doing, and then bring us a Report, and if we are not satisfied with the outcome and the conclusions of Government, that this Parliament takes very drastic action. It is only then that citizens will know that when we converge here, we converge for their very existence. We are here to defend their lives, to defend their rights, and to defend their interests.

Mr Speaker, we say we should not politicise things, but permit me to say that who is responsible for the conduct of the health personnel? It is us the politicians. Who is responsible for making sure that they work in the environment where when there is an emergency, they will respond to it? It is us the politicians. Who is responsible for making sure that there are enough beds in the hospitals? It is us the politicians. So, when we say we should not politicise things, I agree that we should not be partisan about it, but the root cause is always political.

The Speaker: Hon Member, who is responsible for the politician? It is the citizens. They are responsible for the politician. So, when you started by raising the issue about the outrage, that is not enough. You are right. If the citizens should rise up and hold the politician responsible, the politician will be responsible. So, you are right, but do not go to the other side. *[Laughter]* Move in that direction.

Mr Ayariga: Mr Speaker, the point I am trying to make is that whatever is happening out there in the hospitals, whatever the attitude of the doctors and

the nurses and the medical personnel, whatever the level of deficiencies in terms of the infrastructure, we in this Chamber, as the politicians, as Ministers, as Members of Parliament, are responsible, ultimately, because they voted us into office to deal with that problem. Are we doing that? Are we holding the health professionals accountable? Are we providing the infrastructure? Is the budgeting done properly? So Mr Speaker, I do agree with you that the citizens put that in place, but exactly why they have put us there is to deal with these problems.

I want to thank the maker of the Statement. I agree that there should be outrage. I agree that they should look into it. I also agree that Parliament must have an interest in the outcome of whatever investigations have occurred.

3:58 p.m.

Mr Speaker, let me conclude by expressing my most sincere condolences to the bereaved families and to also express our disgust, our shame and our utter embarrassment at the conduct of our medical personnel.

Thank you very much, Mr Speaker.

The Speaker: Hon Members, I would want to congratulate you for setting the pace for a national discussion of this matter. This is a very important issue and I totally agree with you that we should not just leave it at the level of the Ministry or the Korle-Bu Teaching Hospital. This House will take keen interest in what happens.

I direct our Committee on Health to take all the reports that would come from the Ministry, the Korle-Bu Teaching Hospital or wherever and go deeply into it. We have to take control; we need to enquire further into the matter and hold people accountable. This is one of the needless deaths we have experienced in this country.

At the end of the day, I urge the House for us to legislate on the matter. We need to pass an emergency care law on this matter. I know the conditions under which the health personnel operate. But I also know health personnel have handled accident cases and stabilised them in the bush, not in hospitals. Patriotic health workers have done that and people have survived through that. So please, the few that are miscreants should not be allowed to at least carry the day. That is what has been happening. In fact, you just mentioned one. There are many examples of these needless deaths in this country. When you see the same people working outside, their attitude is different, which means that there is something wrong here. That is why I partly agree with the Majority Leader that we should set the agenda as political leaders.

I also recall one of our illustrious kings said that after the politicians are elected into office, they are held hostages by the same voters who elected them. Many of you are seated here playing that game, partisan politics. You cannot see beyond your parties and sometimes you forget that, as some have echoed, you could be the one.

So, please, the Chairperson of the Committee on Health and the Ranking Member, please carry your Members along and work on this matter. At the end of the day, the Minister for Health, together with the Committee, would have to come before this House. Then, we can take that opportunity to legislate on the matter and try to bring finality to these needless deaths in our country.

With this, I thank all of you for your contribution.

I am told that we have another very critical Statement from the Minister for Lands and Natural Resources. I would have loved to preside, but I have a team waiting for me. So, I would call on the First Deputy Speaker to take the Chair. If he is not available, the Second Deputy Speaker will take the Chair, then you can proceed with Business.

Yes, Majority Leader?

Mr Ayariga: Mr Speaker, you gave some directives to the Committee on Health. Do you have timelines? A sense of urgency is important in these matters.

The Speaker: It will be very difficult, because I do not know the timelines of the earlier committees set up by the Ministry and the Korle-Bu Teaching Hospital. So, it is very difficult for me to give timelines. That is why I want them to take control of it, supervise and report back to us on whatever the situation is. Then we can take further and clearer directives on this matter. Yes, Majority Leader?

Mr Ayariga: Mr Speaker, the effluxion of time often kills matters in this country. We are outraged. A few days' time, the Message on the State of the Nation would be presented, some major economic policy comes, then we move on.

Mr Speaker, I think that we must begin to inject a sense of urgency in our affairs. So, we must give each other timelines. Our timeline should dictate the pace at which the hospitals will move. It should dictate the pace at which the Ministry should move. We must give them a timeline, asking them for the report within a certain period. So, that they will know how much pressure they should mount on all the others to finish their work.

It is a very simple matter and the facts are obvious; it is not a complicated case. The facts are already known. They went to various hospitals and they did not attend him. What else is going to be investigated? Just the identity of the people who are responsible for receiving the patient. Whether they were there or they met them, who they spoke to and who misconducted himself. That is very basic. But the system has a way. When we set a committee to investigate, they find a way of making sure that the matter dies at that level.

By the time a Report is ready, nobody is interested because, people have moved on. It denies us an opportunity to fix the situation. So, let us have a definite timeline.

The Speaker: I think the First Deputy Speaker will take the Chair, and the House will have to give an indication as to the timeline. We do not dictate

matters on this Floor, we preside. So, if you draw our attention and we all prescribe the area, then the First Deputy Speaker will be clearer in giving a directive as to the timeline.

I thank you for the opportunity. The First Deputy Speaker to take the Chair.

4:06 p.m. — [HON FIRST DEPUTY SPEAKER, MR BERNARD AHIAFOR, IN THE CHAIR]

Mr First Deputy Speaker: Yes, there is also a Statement.

Mr Ayariga: Mr Speaker, yes, but we had not concluded something. We had requested that the Committee that is going to look into this unfortunate death, should be given a timeline within which to present a Report. The issue came up that, there are other committees looking into it. The Government set up one and the Kole-Bu Teaching Hospital is conducting its own investigations *et cetera*. So, we think that we should give them two weeks to present a report to us.

Mr First Deputy Speaker: Yes, the maker of the Statement?

Mr Frank Annoh-Dompreh: Mr Speaker, we first of all want to thank you for admitting the Statement against the tall list that was in existence. So, we are grateful and also to Members who have spoken to the matter and are putting it in context. But the call for timelines to be added, I think it is in the right place. It is not a referral that is being made to an Ad hoc Committee as permitted by our Orders. The referral was made to an existing Committee of this House.

So, we are not going to start from the scratch where we have to put together Members to constitute a Committee. So, I would want to speak in agreement to the call by the Leader of the House that, a fortnight should be enough for us to bring closure on this matter.

4:08 p.m.

It is a matter that should have our utmost attention and we should also demonstrate to the public that we are committed to addressing such matters when they come up. So, the two weeks is good and I am in total agreement.

Mr First Deputy Speaker: Very well. Hon Members, I will stand on the existing directives to further direct the Committee on Health to look into the matter and report within two weeks.

Mr Kwame Govers Agbodza: Mr Speaker, I just want clarity.

Mr Speaker's direction was that the Committee in Parliament takes the reports from both Korle-Bu Teaching Hospital and the Ministry and peruse it. We currently do not have any report from either Korle-Bu Teaching Hospital or the Ministry. So what timeline are we setting? The Committee in Parliament does not have any report to work with yet. So, the Leader is suggesting that they need two weeks for them to get a report from either Korle-Bu Teaching Hospital or the Ministry. So, the direction is for the agency doing the investigation to present the report to Parliament within two or three weeks—

Mr First Deputy Speaker: What authority do we have to be directing that agency? Three weeks? Very well. That is why I said I am standing on the existing directives to further direct the Committee to report in three weeks.

So, Committee on Health, take note. Yes, the two Leaders are up.

Mr Annoh-Dompreh: I am a bit worried about the timelines and the angle raised by our former Whip rather calling for three weeks—

Mr First Deputy Speaker: Minority Chief Whip, they are not going to start *de novo*. They will base it on whatever report that they will be getting. So, those people should be given some timeline within which to furnish and they will also work and report to us. I so direct.

Yes, I will now call on Hon Emmanuel Armah-Kofi Buah to make a Statement on Osagyefo Dr Kwame Nkrumah.

Mr Emmanuel Armah-Kofi Buah (NDC — Ellembele): Thank you Mr Speaker for the opportunity to make a Statement on the 60th anniversary of the overthrow of Dr Kwame Nkrumah and his government—

Mr Annoh-Dompreh: Mr Speaker, I was in leadership with him. He is my good Friend. He wants to make a Statement as a Minister of State but he cannot make Statements without giving us copies. We do not have copies, we were not informed, it is not right. We should be given copies. That is the

practice. At least give us copies as Leadership. I am not objecting to him making the Statement. No. Minister, I am not objecting. Give us copies. That is all I am saying.

Mr Speaker, if it is your pleasure that he should do it without giving us copies, that is fine.

Alhaji Suhuyini Sayibu Alhassan
— rose —

Mr First Deputy Speaker: Well, let me resolve this with the Leadership, then I would come to you. Yes, Majority Leader?

Mr Ayariga: Mr Speaker, I am making a copy available to him. The entire Frontbench of their Side is depleted. There is only one person sitting there. So instead of five copies, I would give him one copy. So, he has one copy.

Mr Speaker, this is also a commemorative Statement not a Statement about his constituency. It is to commemorate a particular event and every year we have been making similar Statements. Indeed, the Statement that they made earlier, they did not distribute copies to this Side. It was not scheduled. It was not distributed. It was while he was sitting there that I requested, and he gave it to one of the Clerks-at-the-Table and they gave me a copy. So, if he wants to raise the issue of not being given a copy of the Statement as a basis for raising some opposition, we will revisit their previous conduct. They made a Statement without giving me a copy. So, what is he talking about?

Mr Speaker, I think that you have admitted the Statement. Let us proceed.

Mr Annoh-Dompreh: I do not litigate. I am a straightforward person.

Mr Speaker, I would invite you to Order 93, I would read clause 7 and 8 with your leave;

“(7) The Speaker shall cause to be transmitted to the Clerk, Statements admitted to be made on a particular day, to be advertised on the Order Paper for the purpose of notice to Members.

(8) The Clerk shall make available to Members, copies of admitted Statements.”

We cannot be flouting our own rules and when you say that the Leader did not give you copy of the Statement, it is not acceptable to me. Monkeys play by sizes. The two of you should be talking. If the two of you are not relating, this is what will happen.

Mr First Deputy Speaker: Hon Minority Chief Whip, why are we doing this to ourselves?

Mr Annoh-Dompreh: Mr Speaker, I beg you, let me just finish. I am not objecting. Hon Armah-Kofi Buah is my friend. He will do it but I am just saying that next time, he should try at least to give copies to us. That is all. Without adding more, you can permit him to make the Statement.

Alhaji S. S. Alhassan: Mr Speaker, I think that this objection—I do not want to believe, it is because it is a Statement to celebrate Osagyefo Dr Kwame Nkrumah. Mr Speaker, because you see, we have been going— Can I finish?

Mr First Deputy Speaker: Hon Suhuyini, with all due respect—

Alhaji S. S. Alhassan: We have been encouraging—

Mr First Deputy Speaker: Hon Suhuyini, you have the time to contribute to the Statement.

Alhaji S. S. Alhassan: I will, yes. But that is not where I am going.

Mr First Deputy Speaker: Please, I am pleading with you. I am pleading with you. I will therefore call on the maker of the Statement, Hon Emmanuel Armah-Kofi Buah, you have the floor.

The 60th Anniversary of the Overthrow of Osagyefo Dr Kwame Nkrumah

Mr Emmanuel Armah-Kofi Buah (NDC — Ellembele): Mr Speaker, I rise with a heavy heart, yet with a spirit fortified with historical truths and that is how fired up I am today to make this Statement. Today, the 24th of February, 2026, marks 60 years since the most regrettable and darkest moment in our nation's history, the overthrow of the founder of modern Ghana, the man whose very blood mingles with the soil of my beloved constituency, Osagyefo Dr Kwame Nkrumah. Sixty years ago on

February 24, 1966, a dark cloud descended upon our young republic. What was termed at the time as “Operation Cold Chop” was in reality, the assassination of the African dream, the verdict of history.

For decades, the events of 24th February were all shrouded in the convenient narratives of the victors. But today, 60 years removed from that fateful day, the fog of propaganda has been lifted by the cold hard light of the classified truth.

Mr Speaker, we must place on the permanent record of this House that what happened on that day was not merely a coup. It was an assassination of a dream, orchestrated by individuals who could not bear to see an independent, self-reliant, and powerful black star shining so brightly.

4:18 p.m.

Today we know from declassified records across the globe that what really happened was a well-coordinated plot, timed to occur while our President was on a peace mission to Hanoi, seeking an end to the Vietnam War. It was a stab in the back, delivered by those who saw Nkrumah's Ghana as a threat to their neo-colonial interests.

As confirmed by His Excellency the President John Dramani Mahama during our 68th Independence Day celebrations and now supported by overwhelming documentary evidence from the United States Archives, the overthrow of Dr Kwame Nkrumah was a coup inspired,

engineered and executed with the active complicity of external forces.

The “crime” of Nkrumah was not mismanagement; it was his audacity to dream of a United States of Africa that would control its own resources, threatening the grip of neo-colonialism.

Mr Speaker, let us call it what it was: an act of international aggression against a sovereign African state. The coup did not just remove a man, it shattered the vision of an industrialised, self-reliant Ghana. It halted the construction of a nation that would process its own cocoa, refine its own oil and manufacture its own goods. It plunged us into decades of political instability, backtracking on the progress we had made and setting back our attainment of nationhood by a generation.

The Indisputable Architect of Our Freedom

As we acknowledge the tragedy of his overthrow, we must, with equal vigour, reaffirm the unparalleled and singular role Kwame Nkrumah played in birthing of this nation. There are those who, driven by political expediency or historical revisionism, seek to diminish this legacy. They speak of a “collective effort” as if to place Nkrumah as merely one of many contributors.

Mr Speaker, let no one be deceived. Kwame Nkrumah was not just a participant in Ghana's independent struggle; he was the architect, the driving force, and the strategic genius behind that movement.

While we honour the contributions of all our forebears, the historical facts are unequivocal. It was Nkrumah who, upon his return from the United States and Britain in 1947, brought a radical energy to the politics of the Gold Coast. It was Nkrumah who founded the Convention People's Party (CPP) — a mass political party that mobilised not just the elite, but the ordinary people, the market women, the workers, and the youth.

It was Nkrumah who coined the battle cry — “Self-Government Now!” — and organised the Positive Action campaigns of strikes and boycotts that made the colony ungovernable for the British. When he was imprisoned by the colonial authorities for his activism, it was Nkrumah's party that won the 1951 election, forcing the British to release him and invite him to lead government business.

And it was Kwame Nkrumah who, on the night of 6th March, 1957, stood before the world and declared that the Ghanaian people were free forever. His vision did not stop at our borders; he understood that our freedom was “meaningless unless it is linked up with the total liberation of the African continent.”

His legacy is etched into the very fabric of our nation and we can think about it and reflect on it today. The Akosombo Dam that lights our homes, the Tema Harbour that anchors our trade, the Ghana Airways that connected us to the world, the sprawling secondary schools, and the Kwame Nkrumah University of Science and Technology (KNUST), which remains a citadel of

learning. Can we imagine modern Ghana without these foundational pillars?

Conclusion: The Legacy Lives On

As I conclude, I am reminded of the words of Osagyefo Dr Kwame Nkrumah. “I am in the knowledge that death can never extinguish the torch which I have lit in Ghana and Africa. Long after I am dead and gone, the light will continue to burn and be borne aloft, giving light and guidance to all people.”

He lives on in the Akosombo Dam's turbines. He lives on in the minds of students of KNUST. He lives on in every Pan-African ideal we dare to speak. And he lives on in the determination of we, his countrymen, to finish the work he started.

Let this 60th anniversary mark a turning point. Let us, as a people, recommit to the ideals of self-reliance, Pan-African unity and industrial transformation that Kwame Nkrumah so tirelessly championed.

May his soul continue to rest in perfect peace, and may the example of his life forever guide our path.

God bless our homeland, Ghana. Thank you.

Mr First Deputy Speaker: The floor is now open for comments on the Statement.

Yes, Hon Samuel Abu Jinapor?

Mr Samuel Abu Jinapor (NPP — Damongo): Mr Speaker, thank you for

the opportunity to contribute to the Statement made by the MP for Ellembele and the Minister for Lands and Natural Resources. Mr Speaker, some weeks ago, when a similar Statement was made in honour of Dr J. B. Danquah, I made a point, and I want to repeat it here, which is that in celebrating the historic leaders of our country does not automatically translate into the condemnation of others. It is in that spirit that I want to commend and salute the Minister for making this Statement, while I do not agree with the entirety of the content of the Statement.

Mr Speaker, it is trite that Dr Kwame Nkrumah, our first President, was and continues to be a historic leader of our country, and nobody in this country can challenge that. Secondly, I think it is also important that when we are interrogating the legacies and the achievements or the standing of our leaders, we should be dispassionate. We should talk about their good sides, amplify them, and as much as possible, emulate them, and the aspects which are also not particularly desirable, as human as they were, we should acknowledge them.

Mr Speaker, I was particularly pleasantly intrigued when Prime Minister Margaret Thatcher passed and the British people were interrogating her legacy. There were a group of people who celebrated her achievements. There were others who were demonstrated and indicated her flaws. It is common knowledge that Dr Nkrumah fought very much for the independence of our country. Indeed, Dr Nkrumah was the man who led the positive action, who

became the Prime Minister, who negotiated all through till Ghana became a Republic.

Mr Speaker, the motion of destiny was moved in the Parliament by Dr Kwame Nkrumah, and when he became Prime Minister and President, like the maker of the Statement rightly pointed out, he led an industrialisation effort in our country. There are landmarks in our country which continue to stand in his name, which continue to benefit our country. The Akosombo Dam, Tema Motorway, and several other monumental installations. I continue to be particularly inspired by Dr Nkrumah's black consciousness and Pan-Africanism. Let us situate his efforts in the proper historical context. At the time Dr Nkrumah led our country to independence and stood up for black consciousness and Pan-Africanism in those times, that kind of standing was not popular, but he stood up. And if we follow his history and works, he indeed did it with extraordinary excellence, and that obviously should be celebrated.

Mr Speaker, the other thing that I believe we should mention about Dr Nkrumah is the unity of our country. And I think the unity of our country today, to a very large extent, can be traced to Dr Nkrumah's policy of the boarding system in our country, where he insisted that Ghanaians of all walks of life from all parts of Ghana should be in school with one another. So, you could find somebody from Greater Accra being posted to school in Northern Ghana and somebody from Northern Ghana being posted to Volta region. And that has

stayed, and I think it has contributed immensely to the unity and harmony of our country. Mr Speaker, there are several examples I can give to attest to the extraordinary leadership of Dr Kwame Nkrumah.

4:28 p.m.

In the same token, it is also important for us to recognise that there were certain things that happened under Dr Nkrumah's reign which should continue to guide us as a country.

Mr Speaker, experts in constitutionalism say that if we study a country's constitution carefully, it can tell us the country's history and aspirations. I cite, for example, the one-party state system which has been expressly proscribed by Article 3 of our Constitution and for the want of time, I will not read it verbatim, but Article 3 of our Constitution expressly prescribes, outlaws, and bans any form of one-party state in Ghana. It is a direct response to the one-party states in the First Republic. We have to recognise that.

Mr Speaker, Article 270 of the 1992 Constitution talks about the independence of the chieftaincy institution. That, again, is a direct response to the chieftaincy system that pertained in the First Republic of our country, where chiefs could be destooled, de-skinned, and transferred across board. The framers of our Constitution deemed it necessary to expressly proscribe and ensure that the chieftaincy institution is independent. If we look, for example, at the whole of

Chapter 5 of the 1992 Constitution, specifically Article 14, the right to a fair trial and the need to be tried and convicted before being detained are a direct response to the Preventive Detention Act, 1978 in the First Republic.

Mr Speaker, it is evident that, as great as Dr Nkrumah was, he was not a perfect human being or a perfect leader. And so, in discussing the first President of our country, it is important that we recognise—I want to conclude by indicating, our Friends are always very happy to associate themselves with Dr Nkrumah; however, he was not a member of the National Democratic Congress, by any measure. Indeed, Dr Nkrumah was brought to Ghana by Paa Grant, one of the founding leaders of the United Gold Coast Convention (UGCC), the founding political party of the New Patriotic Party, after he was introduced by Ako Adjei and the rest.

Mr Speaker, when we discuss Dr Nkrumah, it should not be looked through the lens of partisanship; never should it be. Indeed, the British Broadcasting Corporation (BBC) has recognised Dr Nkrumah as the African of the century. All of us Ghanaians should be proud of that and all of us Ghanaians should continue to celebrate our leaders, Dr Nkrumah included, and learn from their positive sides and the sides we can learn from.

Mr First Deputy Speaker: Hon Member, you said you were concluding.

Mr S. A. Jinapor: Mr Speaker, I want to commend the Minister for making this Statement and I want to say that the House should today celebrate Dr Kwame Nkrumah, the first President of our country, just as many countries celebrate their first President, such as George Washington of the United States and others. And just as we should celebrate other leaders who also contributed to the establishment and development of our country. [*Hear! Hear!*] Mr Speaker, with these few words, I thank you very much for the opportunity.

Mr First Deputy Speaker: The rules are clear. Let us operate within it. Yes, I recognise the Deputy Minister for Lands and Natural Resources.

Alhaji Yusif Sulemana (NDC — Bole Bamboi): Mr Speaker, I am very grateful for this opportunity. First of all, let me thank the Hon Minister for Lands and Natural Resources for this very important and historic Statement he has made.

Mr Speaker, I just listened to my younger Brother, the Hon Member for Damongo, and I was wondering which Constitution he was making reference to. He was seriously making reference to the 1992 Constitution. Meanwhile, the event we are talking about did not happen under this Constitution. So, I was a bit confused. It is important to situate his references to the Constitution that was in existence at the time of Dr Kwame Nkrumah. I thought that we should make this correction.

Again, a couple of weeks ago, my Brother also read a Statement or contributed to the statement on J. B. Danquah, but he failed to bring up the bad side of J. B. Danquah. But he is very comfortable saying that we need to always look at both Sides. Meanwhile, when he was contributing to the Statement on J. B. Danquah, he never saw anything wrong with J. B. Danquah. I believe that J. B. Danquah was not a saint either, but this is not the day for us to go into the bad aspects of J.B. Danquah. I will not do that. The day will come when we will tell them the wrong and the bad aspects of J. B. Danquah.

I agree with him perfectly when he said that we should eulogise our leaders; let us tell their achievements, look at them, and emulate them. That is exactly what we should be doing. And that is why this Statement is very important. I am just going to touch on only three achievements of Dr Kwame Nkrumah, the founder of the nation called Ghana. He is the founder, and it has been established. Even primary school children are aware that the founder of the state called Ghana is Dr Kwame Nkrumah, and that should be the record that nobody should tamper with.

Mr Speaker, on the achievements of Dr Kwame Nkrumah: One, I am going to look at the educational and health achievements of Dr Kwame Nkrumah. For some of us who are here today, our grandparents enjoyed free education. And that was the initiation of the late Dr Kwame Nkrumah, especially those of us from the northern part of this country. Many of our grandfathers would not

have been educated but for the fact that he was so generous as to give us the opportunity for free education. We have seen, under some administrations, attempts to even take that away from us. We thank Dr Kwame Nkrumah for the very important free education that he gave us.

As was mentioned, very important educational institutions include the Kwame Nkrumah University of Science and Technology. These were some of the important landmarks left by Dr Kwame Nkrumah. Mr Speaker, even as we speak, as a nation, we are struggling to maintain them. And there is a need for us to continue to eulogise him.

Again, when it comes to infrastructure, Mr Speaker, the Tema Motorway that we are all proud of is associated with Dr Kwame Nkrumah, a project that all of us will agree that it has “no size” in any part of this country. We need to eulogise him for this. As if that was not enough, he connected the Tema Motorway to the Tema Harbour. The question is: if this harbour were not there, what would have been the fate of this country? If the Tema Harbour were not there, even our revenue generation would have been affected.

Mr Speaker, let me talk about the Akosombo Dam.

Mr First Deputy Speaker: Hon Member, conclude.

Alhaji Y. Sulemana: Mr Speaker, if not for the Akosombo Dam, we would have been in bad business. I cannot end

without talking about some industries that he built. We have the likes of the Akosombo Dam, the Ghana Industrial Holding Corporation (GIHOC) and the pharmaceutical companies dotted everywhere. In fact, tomato factories were built in this country by Dr Kwame Nkrumah. Today, our people are travelling to Burkina Faso to import tomatoes. This was a visionary leader who created many tomato farms across the country and, to add value to them, established many factories.

Today, as we speak, Mr Speaker, there is not a single meat factory in this country. It took that visionary leader to establish meat processing factories in this country. So if there is any leader who has achieved in terms of education, politics, health and infrastructure, none can be compared to him.

Mr First Deputy Speaker: Hon Deputy Minister for Lands and Natural Resources, kindly conclude. Your time is up.

Alhaji Y. Sulemana: With this, Mr Speaker, I thank you. God bless you. *[Hear! Hear!]*

Mr First Deputy Speaker: Yes, Hon Tampuli.

Mr Alhassan Tampuli Sulemana (NPP — Gushegu): Thank you, Mr Speaker, for the opportunity to contribute to the Statement ably made by the Minister for Lands and Natural Resources, the gentleman representing the good people of Ellembelle.

4:38 p.m.

Mr Speaker, I am disappointed that we did not have the benefit of a prior notice of the Statements, so that we could contribute more meaningfully. That said, we still can make some valuable comments as far as the Statement we had is concerned.

Mr Speaker, Osagyefo Dr Kwame Nkrumah of blessed memory—

Mr First Deputy Minister: Hon Member, the Statement is on the Console. What are you complaining about?

Mr A. T. Sulemana: Very well, Mr Speaker. I am not sure I can read it now.

Mr Speaker, we are celebrating an illustrious son of Ghana, not just Ghana, but of Africa.

Mr Speaker, sometime in 1999 and 2000, those days, I used to be an ardent listener of the BBC from 1995, thereabouts, all the way, so I used to get this information. I listened carefully when voter after voter called in to vote on who is the African personality of the century. At the end of it all, all of us felt very proud that in the face of the likes of Nelson Mandela and so forth, Osagyefo Dr Kwame Nkrumah stood tall among his peers and those who were before him.

Mr Speaker, I am a beneficiary of the Northern Scholarship that was instituted

by the Nkrumah regime. There were times when I was in school that my colleagues from down south, especially around Kintampo, were asked to leave the school because they had not paid school fees. It did not matter whether parents could even afford it; we were entitled to the free scholarship. All of us have to continue to thank the generosity and the pioneering role that Osagyefo Dr Kwame Nkrumah played at the time.

Mr Speaker, there is a lot that we can talk about Osagyefo Dr Kwame Nkrumah, including the iconic Akosombo Dam, which currently continues to generate over 1,000 megawatts of electricity capacity, and at the downstream, we have the Kpone Dam, producing about 60 megawatts and so on and so forth. So, Osagyefo Dr Kwame Nkrumah stands out. One of the things that my good Brother, Hon Member for Damongo said, was about the unity of this country.

Mr Speaker, in December 1957, a law was passed to proscribe political parties that were based on tribes, ethnicity, religion and sectional basis. This is one of the things that has united this country and brought us together; not based on which ethnic group or religious group one belongs to.

So, Mr Speaker, we need to continue to commend ourselves and to commend the pioneers of this country for the role that they played and the foundation that they laid for all of us.

Mr Speaker, I believe sometime in January 1950, Osagyefo Dr Kwame Nkrumah reportedly made a Statement

that the Chiefs will run away and leave their sandals behind. There was tension between Osagyefo Dr Kwame Nkrumah and the traditional authorities in this country. So, when my brother Hon Abu Jinapor makes reference to Article 270, he is making reference to a situation that currently pertains in Nigeria, where one can only become a chief or an *Oba* at the discretion of the state governor. So that the only way one can become a chief is to be recognised and given an appointment letter by a state governor. What my brother was seeking to say is that in this country today, one is a chief based on the definition of a chief under Article 277, which says that a chief is someone who, having hailed from the appropriate royal family, has been, enskinned, installed or enstooled to become a chief, and nothing is mentioned about recognition of government.

Mr Speaker, when we talk about today's multi-party democracy, we must have regard to 1964 when Ghana was declared a one-party state—Mr Speaker, if Ghana continued to be a one-party state, we would not be in this Chamber representing different parties and celebrating our multiplicity.

Mr Speaker, some celebrated in this country in 1966 when the coup occurred, and justifiably so, because they felt the heavy arm of the government of the day upon them. There was no way that democracy could have continued under a multi-party democracy.

Mr First Deputy Speaker: Hon Members, we want to take more

contributions. So, let us operate within the time frame.

Mr A. T. Sulemana: Mr Speaker, while we are eulogising Osagyefo Dr Kwame Nkrumah, we will also recognise that he had his shortcomings just as any other human being, and we must put that on record.

Mr Speaker, I thank you very much for the opportunity.

[Hear! Hear!]

Mr First Deputy Speaker: Hon Members, we can take a few more comments if we restrict ourselves to the mandatory five minutes stated in our Order.

Yes, Hon Minister?

Minister for Energy and Green Transition (Mr John Abdulai Jinapor) (MP): Mr Speaker, let me join the Hon Emmanuel Armah-Kofi Buah to honour the life and enduring legacy of Osagyefo Dr Kwame Nkrumah, a towering figure in Ghana's history, a giant and a colossus of African liberation. But Mr Speaker, let me put it on record that Osagyefo Dr Kwame Nkrumah had a very healthy and cordial relationship with the chiefs. Indeed, they worked hand in hand, shoulder to shoulder and closely. Of course, there were a few chiefs who did not share in the positive aspiration and the positive view of ensuring that we had an accelerated economic development, as far as Ghana was concerned.

Mr Speaker, today is Nkrumah's Day; we should give it to him. If tomorrow it is Dr Busia's Day, we will give it to him. If the next day it is H. E. Flt Lt Jerry John Rawlings' Day, a man in whom I am so proud of, we give it to him. But as for today, whether they like it or not, it is Kwame Nkrumah's Day, and we will give it to him. This is not the day to try to look for faults about somebody whose contribution cannot be erased in the history of Ghana. So, they should not do that.

Mr Speaker, there is a lot that we can learn from Osagyefo Dr Kwame Nkrumah, and his vision as of yesterday is as relevant as it is today, and for me, that is what we should be looking at. Somebody talked about a one-party state. Newton's Third Law of motion states unequivocally that "action and reaction are opposite and equal, but even as they are equal, one is more equal than the other". So, when they go planting *kulungugu* bombs—*[Interruption]* Let me plead with those physicists who metamorphosed a day into lawyers to allow those of us who are still in the science field to do the science. *[Hear! Hear!]*

Mr Speaker, because you said we should not belabour the point, let me commend the Hon Armah-Kofi Buah for bringing this very important topic to the Floor. We share in his joy as the Member of Parliament for Osagyefo's constituency. I know he is blazing the trail, and I will not be surprised if we have another Nkrumah from that constituency.

On that note, Mr Speaker, I thank you very much for indulging me. I am grateful.

Mr First Deputy Speaker: Hon Minister, I am told the name is pronounced “amaa”, not “ama”.

Mr J. A. Jinapor: Mr Speaker, maybe it is the phonetics. I was his Deputy, so I should be able to pronounce his name well.

4:48 p.m.

Mr First Deputy Speaker: Yes, Mr Boamah-Nyarko?

Mr Isaac Boamah-Nyarko (NPP — Effia): Thank you very much, Mr Speaker, for the opportunity to contribute to this Statement made by my senior Colleague Mr Emmanuel Armah-Kofi Buah. Mr Speaker, coming from the Western Region as well, I think it is important for us to commemorate this day. But what are we actually commemorating? We are commemorating the unfortunate *coup d'etat* that led to the end of Dr Nkrumah's reign as President of the Republic. Unlike what my Brother John Jinapor was trying to portray, as if today was Nkrumah's birthday for which we are supposed to celebrate, it is important that we put into context the occasion that we are focusing on.

Mr Speaker, in remembering Osagyefo Dr Kwame Nkrumah, I think we are all *ad idem* to the fact that he contributed significantly to the development of this country. We have

had different schools of thought that believe that if Dr Nkrumah had continued to be in office as President of the Republic, so much could have been achieved, not only in Ghana, but as well in bringing Africa together as one. So that strong advocacy is there.

But we cannot also take away the concerns of others who believe that perpetuating Dr Nkrumah's reign would also have crippled a segment of society who would not have had the opportunity to have the multi-party democracy that we so wish. These are very fundamental matters that we should be guided.

But my biggest question is, 60 years down the line, what has happened to us as a country? We are enjoying the Fourth Republic of this particular country, meaning that we have had governments truncated at the Second Republic, at the Third Republic, and now we are on the Fourth Republic. What lessons have we learned 60 years down the line? All the presidents that have come over the years, what have been their contributions as well to national development? We are singling out Dr Nkrumah for the Tema Motorway, Akosombo Dam, among others. All the leaders that also came into this country, what have been their contribution? For Acheampong, we remember him for Operation Feed Yourself. We remember Structural Adjustment Programme under President Jerry John Rawlings. We remember President Kufuor for the National Health Insurance Scheme. *[Interruption]* Yes, the Heavily Indebted Poor Countries (HIPC) initiative and National Health Insurance Scheme. Then we remember

President Akufo-Addo for the Free SHS. So leaders come and go. But today, in this Parliament, the biggest question I want us to think about, what legacy are we also leaving as Ghanaians? If we take inspiration from Dr Nkrumah, what is the Ninth Parliament doing to also support the promotion of this country? We have the mandate to pass Bills. How well are we focusing in making sure that we become more detailed and thorough to pass Bills that will stand the test of time?

In concluding, I believe that Mr Speaker, Nkrumah has paid his dues. Dr Nkrumah has served this country well likewise others in this country. But we owe it a duty as a Ninth Parliament to also contribute our quota; we become more diligent; we pass laws that will stand the test of time, so that future generations will also ask, when Mahama Ayariga was the Leader in the Ninth Parliament, what did he lead us to achieve? When Osahen Alexander Afenyo-Markin was the Minority Leader, what did he lead us to achieve? When all of us collectively served in the Ninth Parliament, what did we contribute to national development? With those few words, Mr Speaker, I want to thank you for the opportunity.

Mr James Agalga (NDC — Builsa North): Thank you, Mr Speaker. Let me thank Hon Emmanuel Armah-Kofi Buah for the presentation of that eloquent Statement, which is in memory of the overthrow of Osagyefo Dr Kwame Nkrumah on the same day, 24th February, 1966. Mr Speaker, Kwame Nkrumah's contribution to literature as a sitting

president is unparalleled. In fact, he chalked a feat that no sitting president has ever done. In fact, as sitting president, Nkrumah had nine scholarly works to his credit. Most of his works came in the form of predictions.

Let me start with his work, which is entitled *Africa Must Unite*. In *Africa Must Unite*, Nkrumah talks about the balkanisation of the African continent and the dangers associated with such balkanisation. After the overthrow of Nkrumah today, the balkanisation of the continent is evident for all to see, its harmful effects. Because we are not united, today Ghana can have a trade war with Nigeria. Because here in Ghana, we believe that locals and indigenes are the only ones who must be involved in retail trade. If you go to Nigeria, the story is not any different. In fact, people who are of the same ethnic origins in most countries across borders are involved in border disputes. A few days ago, I heard that our Attorney-General and Minister for Justice has decided to bring an action against Togo before the International Tribunal for the Law of the Sea (ITLOS) for the proper delimitation of our maritime domain. It is all because of the balkanisation of the African continent and Nkrumah predicted about all those things.

Mr Speaker, in one of his works, *Neo-Colonialism, the Last Stage of Imperialism*, Kwame Nkrumah again predicted that a time is coming, the colonial powers we had dislodged in our fight against colonialism would take over the continent if care was not taken. Today, Mr Speaker, the giants of our

time are back. In fact, mines are being taken over, railways are being taken over, airports are being seized by those giants and you can name them. Nkrumah predicted all these things.

Mr Speaker, let me advert my mind to a point my Colleague Samuel Jinapor made. He said that Nkrumah had his bad sides as well as his good sides, so when we are talking about Nkrumah, we should not only pontificate about the good things he did. He mentioned the declaration of Ghana as a one-party state, which was one of the things Nkrumah did which was bad for our democratic experiment. But Mr Speaker, what Hon Samuel Jinapor failed to tell us is that the exigencies of the time in the 1960s made it very compelling for Ghana to become a one-party state. Mr Speaker, after Kwame Nkrumah had successfully routed all the political parties in successive elections, the political parties turned themselves into terrorist groups and were actually behind the Kulungugu bombings. In fact, before Sgt Ametepe's execution, he made startling confessions about the involvement of political bigwigs who pushed them to do what they did. So, if we talk about one-party state, H.E. Nkrumah was not afraid of losing elections to any political party at the time. In fact, we had the National Liberation Movement (NLM). The NLM preached the formation of a federal state. Their slogan was *y'ate yen ho*, let us break away. In fact, when they realised that they could not defeat Nkrumah in elections, what was Asante at the time was declared a no-go area. Mr Speaker, can we imagine that a sitting president could not even set foot in a part of this

country? That is why groups like the NLM had to be disbanded. The exigencies of the time warranted it.

Mr Speaker, can we imagine that after that dastardly act at Kulungugu, the opposition at the time was still not satisfied, so in 1964, they pushed Sgt Ametepe to shoot Nkrumah at close range. If you were Nkrumah, what would you have done? What would have been your response? So the Preventive Detention Act, 1958, was a direct response to the acts of terror which had been committed at the time. A leading political figure in this country, Mr Obetsebi-Lamprey, was convicted in absentia for plotting to kill Kwame Nkrumah. His base was Lomé. So, nothing was left of the opposition because the opposition had even turned themselves into terror organisations. That is why the one-party state was declared and institutionalised in our national constitution.

4:58 p.m.

Now, Mr Speaker, we talk about Chapter 5 of the Constitution, which is a response to the lack of a Bill of Rights in the 1960 Constitution. Yes, there was no Bill of Rights.

So, in conclusion, all I am seeking to say is that Dr Kwame Nkrumah was an astute leader. In fact, he was voted as the African of the Millennium in 1999 by a pro-Western media outlet, the British Broadcasting Corporation (BBC). So, when we are talking about Dr Kwame Nkrumah, the least we can do is to say that 24th February, 1966, was an

inglorious moment and a tragic moment which should never have happened in the first place. I thank you, Mr Speaker, for the opportunity.

Mr First Deputy Speaker: Leaders, we have done three on each Side. Any indication? Yes, Minority Frontbench?

Osahen Afenyo-Markin: Mr Speaker, I got a signal from my Colleague, the Leader of the House, but I saw two Gentlemen up behind him, and then I saw one behind me. So, I would want to plead with him that maybe we can just take one on each Side and close it up with Leaders, if he does not mind. What do you think?

Mr First Deputy Speaker: Hon Members, I recall the agreement that had been reached at the Conclave.

Mr Ayariga: Yes, Mr Speaker, let us keep to that commitment. So, it is just Leadership.

Minority Leader (Osahen Alexander Kwamena Afenyo-Markin): Mr Speaker, with respect, let me first thank the maker of the Statement for bringing this very important matter to the Floor of the House. In fact, I had a meeting to attend outside of this Chamber, when I was signalled by my respected Colleague that the Statement on the overthrow of Dr Kwame Nkrumah will be read by him, and it is his desire that I stay behind to add a voice to it.

Mr Speaker, upon careful look at the document before us, it is titled,

“Parliamentary Statement on the 60th Anniversary of the Overthrow of Osagyefo Dr Kwame Nkrumah.”. So, this Statement in itself is not celebrating the work of Dr Kwame Nkrumah. It is, however, recollecting the overthrow and telling us that it has been 60 years since the man was overthrown.

Mr Speaker, I am very uncomfortable talking about *coup d'états* because the 1966 *coup d'etat* is not the only *coup d'état* this country has witnessed. We have witnessed other *coup d'états*. We are also aware that through a *coup d'état*, a government was brought into being. Eventually, that government that came into being is that which birthed this Fourth Republic Constitution, and that has made it possible for us to be in this Chamber today to be involved in a national discourse.

But, Mr Speaker, I was particularly struck and I must say curiously struck by some comments that came to this Floor coming from no less a person than my own very senior at the Bar, Hon Agalga. In his comment, he sought to justify the enactment of the Preventive Detention Act (PDA), and made his own assessment. Some of the Statements he made involve personalities who also have families, have children and grandchildren. What is sauce for the goose is sauce for the gander. I do not want to repeat some of the things he said. But if the children and the grandchildren of these individuals whose names were mentioned a while ago on serious allegations that have not been substantiated in any public records are to take up these issues, then what it means

is that we will be in a vicious cycle of allegations and counter-allegations, accusations and counter-accusations.

I would want to acknowledge the content of Hon Armah Kofi Buah's Statement which is to the effect that Dr Nkrumah led a government that took us on a path of industrialisation. That is a fact that no one can deny. To the extent that he outlined certain achievements of the Nkrumah government, this Side of the House, a Minority, can only associate with that. Because, Mr Speaker, obviously if a government has come into being, has led a path to industrialisation, every right-thinking Ghanaian must acknowledge that achievement whether we disagree with his political philosophy or not. But it is equally important that the Second Republic which ushered in, for the first time, our political tradition undertook a major decentralisation programme which laid the foundation for the current decentralisation that we have enshrined in our Constitution, and the records will bear me out.

Again, the private sector initiative where Ghanaian citizens were encouraged to get into private sector, to do business, also began actively in the Second Republic. No doubt, when General Ignatius Kutu Acheampong took over the reins of governance after his *coup d'état*, he initiated this operation "Feed yourself, feed your industry". But all of that took root from the Dr Busia initiative under the Second Republic. Mr Speaker, recently we know what we have achieved under former President John

Agyekum Kufuor's Golden Age for Business, the Health Insurance Policy, and without doubt by far, the Free Senior High School (S.H.S.) which we all know has come to help transform our country by way of investing in human capital.

Mr Speaker, in talking about the history of our country, we must present it in a united form. It should not be a kind of history that everybody will have his version and, in the end, that history will divide this House; no. We must be measured and rely on historical facts if we mean to talk about history. And we realise that no matter which path we all take, if we are dealing with a fact, we would all congregate at one point. That, I think we should bear that in mind.

I would want to state that although our leader, the first President, led the independence of this country, that effort was collective from the United Gold Coast Convention (UGCC) that acknowledged and recognised his work in Manchester as part of his activism in nationalist movement and paid for his ticket to come to Ghana. To the chiefs, to the veterans, to the ordinary citizens of the Gold Coast who took up nationalist activism and eventually Nkrumah using his mass mobilisation and organisation skills to take advantage for the benefit of his party, Mr Speaker, we cannot take these ones away.

The role of the Big Six in the UGCC, of which Nkrumah himself was a member, must not also be discounted. I am saying that we must reflect a history that embraces diversity.

Anything that seeks to diminish, bring down or whittle down the diversity of our nation should be something that none of us must celebrate.

5:08 p.m.

It is clear from the historical fact that aspects of the Convention People's Party (CPP) administration did not embrace pluralism and diversity and I can argue this any day. So, the argument from Hon James Agalga that certain political parties could not put themselves together and therefore, His Excellency the President, Kwame Nkrumah, as he then was, had no choice but to enact in the constitution a one-party system. Mr Speaker, that is a very rich statement coming from a learned Colleague, and I think that it must not be encouraged.

Mr Speaker, we must be proud of our respective political traditions. Hon Armah- Kofi Buah made the Statement this afternoon, today, does not belong to CPP. He finds himself with the National Democratic Congress (NDC) that traces its roots to Flt. Lt. Jerry Rawlings, who had his own ideology, which they all embraced. I am saying that much as he is a Nkrumahist, he relates to a tradition that has a blend of Nkrumahism and other ideologies. There is nothing wrong with moving to tell your story, but in telling your story, care must be taken not to condemn others.

So, Mr Speaker, I support him if he wants to tell his story, but the story must not be told at the expense of the tradition that I belong, the centre-right ideology that believes in free enterprise, free

speech, constitutionalism, the rule of law, and that opportunity must be given to all Ghanaians. There must be pluralism in society. That is a tradition I belong to, which I am proud of; tell your story, and let me tell my story.

Mr Speaker, there must be some lessons to be learned. I have already said, and at the risk of being repetitive, I want to say that Nkrumah's industrialisation effort must be commended and acknowledged; the Akosombo Dam, and the continental leadership he provided. Mr Speaker, in history, no leader has provided such continental leadership as that which we witnessed under Nkrumah, and I will not whittle this down. In fact, it is that continental leadership role Nkrumah provided that saw Ghana being propelled in the international space by other leaders that followed. We saw what President Rawlings did, we saw what J. A. Kufuor did, and we saw what Nana Addo Dankwa Akufo-Addo did, to the extent that Ghana is well-placed for its citizens to play important roles when it comes to international diplomacy. Mr Speaker, that I give it to President Nkrumah, and that record must reflect.

Mr Speaker, excesses must be discussed. For instance, in today's history, it is a fact that it was during the NDC's time that the Chief Justice was removed. Nobody can take it away. No matter how we colour it, it has become part of the records of the Government, and any objective student of history will see that as part of the excesses of the Government. Mr Speaker, that we must acknowledge.

That is the reason I am saying that the PDA must not be justified by anybody in this Chamber. The PDA must be acknowledged as one of the excesses of the Nkrumah administration. The Nkrumah administration also labelled its policies in a manner that over-concentrated power. Mr Speaker, concentration of power as the maxim goes, “power corrupts and absolute power corrupts absolutely”.

Mr Speaker, the Nkrumah CPP Government created a centralised system that in itself disallowed pluralism, disallowed diversity, and disallowed different shades of opinion. This is part of the records. It is not wrong to point this out, and I hereby reaffirm that. However, we must ensure that the democracy we have today in Ghana must endure. We have to ensure that with all the lessons learned from the Nkrumah era and some of the excesses, we who have the opportunity of history, will do the right thing and ensure that we can accommodate one another.

Fortunately for us, under this Fourth Republican dispensation, the two main political parties that have been running government have had the opportunity to also be in opposition. So, it is a lesson to those in Government today. If outside we made some mistakes yesterday, find a place in your heart to overcome whatever excesses that you think came from us over the last eight years. However, to end that vicious cycle, there is a need to lay a new foundation upon which the future will remember for tolerance; the you-do-me-I-do-you must end. A situation where, when a new government is

coming into office, businessmen are afraid. A situation where Ghanaian businesses suffer when there is a change in government, while foreign businesses expand, grow, and get new opportunities. We need to look at all of that.

Mr Speaker, the youth unemployment situation is something that calls for action, and I will not belabour. Because, whilst we are talking about governance and talking about perhaps some of the concerns that lead to an overthrow of a government, unemployment is key. So, whilst we talk about Nkrumah’s overthrow, it is important that we, as a House, particularly those of us on this side of the House, ensure that we engage in proper scrutiny that would make those of you in Government sit up. Sit up in ensuring that promises you made are fulfilled, policies are enacted in a manner that will create jobs, like the 24-Hour Economy, they said, one job; three shifts—

Mr First Deputy Speaker: Hon Minority Leader, kindly conclude—

Osahen Afenyo-Markin: Mr Speaker, I am on my last note. Give me a minute, and I will land for you. Mr Speaker, like the issue of the cocoa producer price, we have a duty, and it is a duty *sine qua non*. Mr Speaker, we have a duty as a Minority to point out to them how wrong such a decision is, that they promised the cocoa farmer that when they come into office, they will increase the producer price to GH¢6,000. But when they came, they reduced it.

Mr Speaker, this is something that it can only take democracy for the Minority to air its views. If it is a one-party state, the Minority cannot speak, and there will be no Minority, and they may not even know that they are doing something wrong. They will take the people for granted. At least when we took them on, they started paying the cocoa farmers, but it is not enough. For instance, during the Message on the State of the Nation, we expect that Mr President will announce a reversal of that decision. Mr Speaker, it is not enough to pay the cocoa farmers. What we want is for them to restore the cocoa farmer to his original state.

Mr Speaker, I shall conclude by submitting that, one, our country's history is bigger than one individual. Talking about who is a founder and who are the founders is, to me, very immaterial and inconsequential. What matters is to acknowledge the fact that a collective effort was made, but there was a leader. Mr Speaker, we, on this Side of this House, will always welcome issues that would come up, especially when such issues deal with the history of our country. Because we are committed to defending a constitutional order that guarantees freedom, multi-party democracy, and accountability.

5:18 p.m.

We do not want Statements that will seek to justify a one-party state, no. We would be bringing back unhealthy memories.

Mr Speaker, I hold a view, finally, that honouring Dr Kwame Nkrumah as an individual means strengthening institutions, expanding opportunities and safeguarding liberty for future generations. Because Mr Speaker, you would be talking about the good and the bad; you would be talking about a man who laid down his life alongside others for our country. Our youth need somebody to inspire them. So, it is not about seeing everything wrong with the CPP and Dr Kwame Nkrumah.

Mr Speaker, in this country, we do not celebrate patriotism. We have over-polarised everything—

Mr First Deputy Speaker: Hon Minority Leader, you say I am a man of the rules, you are a man of prudence. But look at what is happening. If you know the right thing but you do not do it—

Osahen Afenyo-Markin: Mr Speaker, that is so. But I am having my last word.

It is therefore important that we take every step in giving historical account to ensure that we live as a united country rather than a polarised society.

Mr Speaker, that said, I will resume my seat without more, and thank you for the treasured speech.

Mr First Deputy Speaker: Yes, Hon Majority Leader?

Mr Ayariga: I will yield to Hon Suhuyini Alhassan.

Mr First Deputy Speaker: Yes, Hon Suhuyini Alhassan?

Alhaji Suhuyini Sayibu Alhassan (NDC — Tamale North): Mr Speaker, from all indications, it looks like I was right when earlier Hon Annoh-Dompreh needlessly interjected (to be expunged on the order of Mr Speaker) in the attempt by the Hon Emmanuel Armah-Kofi Buah to present the Statement. My indication was that it was my hope that his interjections were not based on the fact that the Statement was to celebrate Ghana's favourite, Ghana's founder, Osagyefo Dr Kwame Nkrumah, the one and only. [*Hear! Hear!*]

Mr Speaker, clearly the contributions from their Side seem to indicate clearly that they are apprehensive and uncomfortable every time the name Osagyefo Dr Kwame Nkrumah is mentioned. It is therefore not surprising that today, if you google "Ghana's day of shame", that phrase is synonymous with the overthrow of Dr Kwame Nkrumah. It has come to be accepted worldwide that indeed, 24th February, 1966 was and still remains Ghana's day of shame.

Mr Speaker, on a day like this, I miss my dear brother Hon Ibrahim Murtala, the former Member of Parliament for Tamale Central, because I believe, that on a day like this, when the Big Six was mentioned, he would have reminded them that during the 1948 riots, five of the Big Six who were arrested denied Osagyefo Dr Kwame Nkrumah and denied their involvement in the riot. I am sure that he would have reminded them of the bomb-throwing history that they

so much hate to hear. But may his soul rest in perfect peace.

Mr Speaker, you heard our Colleagues on the other Side talk about the need for us to celebrate our leaders but recognise their human failings. You do not hear that when they make Statements on Dr Busia or when they make Statements on J.B. Danquah. They do not take their own advice that we must recognise human failings when they make statements to celebrate them. We must be very consistent in our arguments and we must show equity. When we demand equity, we must come with clean hands. For example, you would hear our Colleagues say Oh, when you talk about former President Rawlings, it is structural adjustment. But when you talk about former President Kufuor, it is not HIPC but National Health Insurance. Please, compare National Health Insurance to rural electrification and compare structural adjustment to HIPC then you would be considered objective and fair. Mr Speaker, when you talk about the removal of a Chief Justice, do not forget about the removal of a Chairperson of the Electoral Commission. That is how you are consistent and you are respected. But when you pick and choose, you are selective, and yet you pontificate how your Side is rather the best, you become a laughing stock of those who know the history and know the facts and know these issues.

Mr Speaker, for me, even what Dr Kwame Nkrumah did in the area of infrastructure is not as important and significant as the awareness that his

leadership created; the consciousness that his leadership created in not just the Ghanaian but the African. When we talk of the Ghana Airways, it was not just about an airport, an airline and pilots. It was about the dignity of the African and how even black people all over the world associated with that success and celebrated it. When we talk of the Black Star Line, it was not just a ship sailing on high seas. It was what it represented, the dignity, the self-awareness, the consciousness that the African can indeed manage his own affairs. When we talk of the motorway, which was one of the first to be constructed in the world, even before Britain constructed their motorway, Mr Speaker, it tells you that it was not just brick and mortar, it was about the consciousness.

Mr Speaker, I am therefore, happy today that as we mark Ghana's day of shame, our international airport that receives visitors no longer carries the name of the person who overthrew this greatest son of Africa. I am happy that today our international airport is known as the Accra International Airport and no longer that name. I am happy that today we are not celebrating the one who created that dark day.

Mr Speaker, let us however not ignore the contributions that other leaders have made since that overthrow, indeed, especially as we started the Fourth Republican Constitution. It is not safe for us, in highlighting our failings, to forget to acknowledge the successes and the advancements that we are making in various fields. When we do not acknowledge these achievements and

little successes that we are chalking under the Fourth Republic, we put that fourth republican democracy at risk. Today, I listened to a number of radio stations and in celebrating Dr Kwame Nkrumah, it was almost as if after Nkrumah, nothing good has happened to this country. Indeed, it is true that, that day remains the darkest day in our history. It is true that if Dr Kwame Nkrumah was not overthrown in the manner and time that he was overthrown, we would have been better off.

But, Mr Speaker, it is not the case that we cannot pick the pieces and do better from now onwards. But let us remember, let us remember that indeed fighting against the celebration of Dr Kwame Nkrumah is like kicking against a stone. It is only your feet that will get injured.

I thank you very much, Mr Speaker.

Mr First Deputy Speaker: Hon Members, before asking for any indication, the Statement that "Hon Annoh-Dompreh made needless interjection" is hereby ordered to be expunged from the record.

Yes, any indication?

5:28 p.m.

Mr Richard Acheampong: Mr Speaker, we would turn to the item numbered 7, Questions. The Minister has been here since morning.

Mr First Deputy Speaker: Are you aware there is *Order Paper Addendum*?

Mr Richard Acheampong: Yes, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Member?

Osahen Afenyo-Markin: Yes, but before you say something to the Speaker, you consult. You do not just get up and make applications. What I am saying is that you normally would have to consult. You do not just make an application; there is a practice here and he knows.

Mr First Deputy Speaker: Yes, Majority Leader, please indicate the Business we should take.

Mr Ayariga: Mr Speaker, I want us to vary the order of Business, so that we can have *Order Paper Addendum*. The item numbered 1, Presentation of Papers, that is the proposed formula for disbursement of the Ghana Education Trust Fund for the year 2026. Yes, Minority? The application is to vary the order of Business to take the item numbered 1 on the *Order Paper Addendum*.

Alhaji Habib Iddrisu: But, Mr Speaker, the Majority Leader must give indication that after laying the Paper, we are coming back to answer for the Questions on the Ministry of Works Housing and Water Resources. We do not have any difficulty with that, so he can go ahead and lay it.

Mr First Deputy Speaker: Yes, we vary the order of Business. At commencement of Public Business, the

item numbered 1, starting with 1(a), by the Minister for Education.

Mr Ayariga: Mr Speaker, I want to request your permission for the Deputy Minister to lay it. We all know that the Minister is unavoidably absent.

Mr First Deputy Speaker: Yes, the application is for the Deputy Minister—

Alhaji Habib Iddrisu: Mr Speaker, we have no difficulty. The Deputy Minister, who is the President of the dog meat eaters association, is my good Friend, so he can lay it on behalf of the Minister.

Mr First Deputy Speaker: Well, I am aware you are the Vice President. *[Laughter]*

Yes, Hon Deputy Minister?

Alhaji Habib Iddrisu: Mr Speaker, the record must not bear this. I am a Muslim and I do not eat dog meat. *[Laughter]* Mr Speaker, so for that matter, I think that one is a very expensive joke.

Mr First Deputy Speaker: So, if you are a Muslim but you do not eat dog meat, how did you see the president eat dog meat?

Alhaji Habib Iddrisu: Mr Speaker, he told me that he is the president of the dog meat eaters association and he said he is even the global president. So, Mr Speaker, that is what I know him to be.

Mr First Deputy Speaker: Well, it is a very good meat. Yes, Hon Deputy Minister?

PAPER

By the Deputy Minister for Education

Proposed formula for the disbursement of the Ghana Education Trust Fund for the year 2026.

Mr First Deputy Speaker: Yes, should we take the item (b)?

Mr Ayariga: No, Mr Speaker, we cannot take the item (b). That should be after. So we can go back to Questions, take a few of them and then start with the Bills. Our original plan was to have taken the Bills, but we have been overtaken by circumstances. The two Statements have really taken much of our time. The National Security Coordinator has been here since 2 p.m. with a view that we will take a few clauses of the Bill. But I plead with you that you bear with us so that we can take some Questions for the Minister for Works, Housing and Water Resources then we would come back to the Bills.

Alhaji Habib Iddrisu: Mr Speaker, Majority Leader, with respect, I think we need to prioritise the Bills that we are looking at. We have the Legal Education Reform Bill, 2025 that we are still looking at. We are at clause 50 and have 35 clauses left. I do not see the urgency in the Security and Intelligence Agencies Bill, 2025. So, we do not need to rush it

for now. Let us leave it, finish the Legal Education Reform Bill, 2025 before we come and start with the Security and Intelligence Agencies Bill, 2025. So, after the Questions, let us go to the Legal Education Reform Bill, 2025. Let us get it done or else we touch different things in bits and it does not make our work very effective. Majority Leader, you are confusing Hon Members.

Mr First Deputy Speaker: Hon Members, we have ten Questions related for the Minister. Are we taking all ten and still coming back to the Bill? Looking at the time, it is now 5:36 p.m.

Mr Ayariga: Mr Speaker, if we decide not to engage in follow-up questions, maybe if the questioner really needs explanation for something, they can ask. But if others can be stopped from asking follow-up questions, we can take all the Questions.

Mr First Deputy Speaker: Very well. The item numbered 7, Questions. I will call on the Minister for Works, Housing and Water Resources to take their designated seat, while I call on the Members to pose their respective Questions.

The first Question on the *Order Paper* is Question numbered 318, standing in the name of Ms Gloria Owusu, Member of Parliament for Trobu. You have the floor.

Dr Fred Kyei Asamoah: Mr Speaker, I would like to seek your leave; I come under Order 88(3) to ask the Question on behalf of Ms Gloria Owusu, who has given me the permission to do that on her behalf.

Mr First Deputy Speaker: Well, I do not grant permission and my leave is not pursuant to permission. So, kindly resume your seat. I will move to the Question numbered 369—

Dr F. K. Asamoah: Mr Speaker, I am seeking your leave with authority from the Hon Member—

Mr First Deputy Speaker: Yes, it is about time Hon Members use the procedural language. Yes, you have the floor.

ORAL ANSWERS TO QUESTIONS

MINISTRY OF WORKS, HOUSING AND WATER RESOURCES

Measures to Complete Drainage Works in Trobu Constituency

Dr Fred Kyei Asamoah *on behalf of Ms Gloria Owusu (NPP —Trobu):* I rise to ask the Minister for Works, Housing and Water Resources the measures being taken to complete all outstanding drainage works in the Trobu Constituency to avoid loss of lives and property when it rains.

Minister for Works, Housing and Water Resources (Mr Kenneth Gilbert Adjei): Mr Speaker, my Ministry is concerned about flooding in the Trobu Constituency within the Ga North Municipal Assembly, which threatens lives, livelihoods, and property. Flooding in the municipality is primarily caused by unauthorized structures built on waterways and by

encroachment into wetlands and natural water-holding areas.

The Ministry is fully aware of the critical importance of these challenges to the municipality's water bodies and their impact on flood control and environmental management.

The Ghana Hydrological Authority (HYDRO), under the Ministry of Works, Housing and Water Resources, undertook desilting works under the 2020 and 2023 National Flood Control Programme (NFCP), notably in Amasaman Railway, Faase, Pokuase Afiaman, Insatsi River, and the Torpido Guest House area, in 2024.

These projects have substantially enhanced capacity, facilitated unrestricted flow, and accommodated a significant volume of stormwater during heavy rainfall episodes.

5:38 p.m.

This initiative is part of a comprehensive strategy to strengthen the hydrological resilience of flood-prone areas nationwide.

Furthermore, HYDRO has undertaken extensive drainage studies to develop effective flood mitigation strategies tailored to local hydrological and environmental conditions. The objective is to improve the planning, design, operation, and maintenance of stormwater drainage systems nationwide, with particular emphasis on the Greater Accra Region. As a result of these studies, a storm drain was

constructed at Muunse along the Ofankor Highway last year.

Mr Speaker, to address this issue sustainably, we have prioritised the development and implementation of catchment-based Drainage Master Plans for major cities and rapidly growing towns. These Plans account for the comprehensive hydrological and hydraulic behaviour of river basins and urban catchments to guide appropriate drainage alignments, designs, and outfall management.

Second, based on these Plans, the Ministry, through HYDRO and other stakeholders, will incorporate both engineered and nature-based solutions into urban drainage designs. For example, the construction of retention and detention ponds is being prioritised. These ponds temporarily store stormwater, reducing peak flows before controlled release downstream, thereby preventing direct high-volume discharge into rivers and lagoons during storms.

In addition, green infrastructure solutions, including bio-retention swales, infiltration trenches, and constructed wetlands, will be integrated into drainage projects to treat and attenuate stormwater before it enters natural water bodies, thereby promoting groundwater recharge and reducing pollutant loads.

Mr Speaker, in addition to these physical interventions, we have enhanced our focus on solid waste management and pollution control within drainage channels. Silt traps,

screens, and waste retention chambers will now be standard features in our new drain designs, strategically installed to intercept waste before it clogs main channels or enters sensitive rivers and lagoons. Complementing this effort, we are increasing public awareness and local enforcement to address indiscriminate waste disposal, a primary cause of drainage blockages and flooding.

Furthermore, the Ministry is preparing a Legislative Instrument aimed at operationalization specific provisions in the Ghana Hydrological Authority Act, 2022 (Act 1085). The enforcement of these provisions, among other measures, is expected to facilitate drainage easements and safeguard waterway buffers from encroachment.

Mr Speaker, it is important to note that the Ministry has provided for a number of drainage interventions in the National Flood Control Programme for the Ga West Municipality, subject to the release of funds from the Ministry of Finance.

Mr Speaker, I wish to assure Hon Ms Gloria Owusu and this esteemed House that my Ministry is focused on putting in place the requisite measures to ensure that all drainage works in the Ga West Municipality, particularly the Trobu Constituency, are completed according to design and in a sustainable manner.

Mr First Deputy Speaker: Yes, Hon Member any supplementary question?

Dr F. K. Asamoah: No supplementary question.

Mr First Deputy Speaker: We then move to Question number 369 standing in the name of Mr Michael Okyere Baafi.

GWL Works — Deteriorated Asphalted Koforidua Township Roads

Mr Michael Okyere Baafi (NPP — New Juaben South): Mr Speaker, I beg to ask the Minister for Works, Housing and Water Resources the specific nature and purpose of the ongoing work by the Ghana Water Limited (GWL) which has deteriorated the asphalted Koforidua township roads constructed by the previous administration.

Mr Adjei: Mr Speaker, the ongoing works by Ghana Water Limited (GWL) in the Koforidua township primarily consist of emergency repairs to the existing water distribution pipeline infrastructure.

Mr Speaker, before the commencement of construction and asphalt laying of the Koforidua township roads, no arrangements were made to relocate underground water pipelines in accordance with standard practices.

Consequently, a 300-mm diameter Asbestos Concrete pipeline located beneath the newly constructed roadway is experiencing frequent bursts due to its obsolete condition and the effects of

heavy vehicular loads. This has required repeated excavation of the asphalt surface to access and repair the damaged pipeline segments.

Mr Speaker, the purpose of the ongoing work is to perform critical maintenance and repairs on the pipeline to restore water supply to affected communities. This intervention is intended to prevent potential health and environmental hazards from prolonged leaks along the pipeline.

Mr Speaker, the Ministry is aware of the impact these repair works have on the integrity of the road. Ghana Water Limited is taking the necessary steps to engage the relevant Road Authorities to agree on modalities to prevent the need to excavate road surfaces after construction, including the eventual relocation of the pipeline infrastructure from the middle of the road.

Mr First Deputy Speaker: Any supplementary questions?

Mr Baafi: Mr Speaker, I would like to find out from the Hon Minister, in the event where these works that they are doing affect private facilities, private dwelling houses of private citizens of New Juaben South and for that matter Koforidua, is there any compensation somehow that will be provided for the owners of these facilities?

Mr First Deputy Speaker: Please, file a specific question.

Mr Baafi: Mr Speaker, with all due respect, I am talking. Just to follow up

to the Question I asked, I was only asking about the main roads, but sometimes it affects private facilities that are very close to the main road.

Mr First Deputy Speaker: Look at your Question in relation to Standing Order 89.

Mr Baafi: Thank you very much. I am guided, thank you.

Mr Osei-Adjei: Mr Speaker, I would like to find out from the Minister, the households that have been cut off because of these constructions, what are the interim measures for these households to be connected to the Ghana Water Limited for the supply of water?

Mr Adjei: Mr Speaker, right after the works are completed, the households will start getting water. Thank you.

Nana Osei-Adjei: Mr Speaker, can the Hon Minister be kind enough to give us some timelines?

Mr First Deputy Speaker: Hon Minister, any timeline?

Mr Adjei: Mr Speaker, the work is ongoing. I have to cross-check and be sure with the timelines.

Mr First Deputy Speaker: We move to Question number 388, standing in the name of Hon Maxwell Kwame Lukutor.

Current State of the Agordomi Water Expansion Project

Ing Surv Maxwell Kwame Lukutor (NDC — South Tongu): Mr Speaker, I beg to ask the Minister for Works, Housing and Water Resources the current state of the Agordomi Water Expansion Project in the South Tongu Constituency which is expected to supply water to other parts of the country and Togo.

Mr First Deputy Speaker: Hon Members, before calling on the Hon Minister, I will ask the Second Deputy Speaker to take the Chair. Before then, let me say that the formula is rather referred to the Committee of the Whole for consideration and reports. Yes, Hon Minister?

5:48 p.m.

Minister for Works, Housing and Water Resources (Mr Kenneth Gilbert Adjei): Thank you, Mr Speaker.

Mr Speaker, the Ministry of Works, Housing, and Water Resources is currently engaged in the rehabilitation and expansion of the Keta Water Supply Project. This initiative aims to ensure the sustainable provision of potable water to regions and communities within the Southern Volta enclave. It involves rehabilitating the existing water supply infrastructure to restore its original capacity and constructing a new water treatment plant with a capacity of 35,000m³ per day (equivalent to 7.7 million gallons per day) in Agordome.

The contractor, M/S Lesico Infrastructure SRL, is presently carrying out on-site work, though at a notably slower rate, due to the nonpayment of the contractor's Interim Payment Certificates (IPCs) since 2022, which is a result of the Ministry of Finance's Debt Restructuring Efforts Program. As of December 2025, the project had achieved 72 per cent completion.

Mr Speaker, upon completion, the project is expected to enhance the water supply for Sokagope, Dabala, Agordome, Whuti, Tegbi, Woe, Anloga, Keta, and the surrounding communities.

Mr Speaker, regarding the water supply to Togo, the Ministry intends to advance this initiative through the Sogakope-Lomé Water Supply Project.

The technical feasibility study, supported by the African Development Bank (AfDB), has been finalised. The remaining responsibilities include the completion of pertinent documentation, specifically:

- i. The Inter-Governmental Agreement between the Governments of Ghana and Togo; and
- ii. The Public-Private Partnership Feasibility Model to be adopted for the implementation of the Project.

Mr Speaker, upon completion, the project will enhance the water supply for communities including Abor, Agbozume, Akatsi, Zenu, Aflao, and Lome.

5:50 p.m. — [HON SECOND DEPUTY SPEAKER, MR ANDREW ASIAMAH AMOAKO IN THE CHAIR]

Mr Second Deputy Speaker: Thank you very much. Hon Lukutor, any supplementary question?

Ing Surv Lukutor: Yes, Mr Speaker. May I know from the Minister what immediate plans there are to pay Lesico to complete this project, and how soon will he be expected to complete the same?

Mr Adjei: Thank you, Mr Speaker. Currently, the Ministry is engaging the Ministry of Finance to clear the outstanding IPCs and I am sure when the IPCs are cleared, latest by the end of 2027, the project will be completed. Thank you.

Mr Second Deputy Speaker: Very well. Yes, any further questions?

Ing Surv Lukutor: Yes, Mr Speaker.

Mr Speaker, will the Minister and the Ministry be kind enough to add a second phase of the project which involves laying additional 10-inch or 12-inch pipes to the Sogakope township, to the existing project of Lesico since the pipes are already on site at Agordome, to relieve the people of the district who are in dire need of potable water?

Mr Adjei: Thank you, Mr Speaker. The point is well noted. I will discuss with the engineers if it could be done. If

it could be done, we will definitely do it.
Thank you.

Mr Second Deputy Speaker: Very well. Hon Members, I believe this is a constituency-specific Question, so we will move to Question 441 and the Question stands in the name of Hon Member for Bekwai, Hon Ralph Poku-Adusei.

Hon Member, you have the floor now.

Plans to Attract Private Sector Participation in Housing Delivery

Ralph Poku-Adusei (NPP — Bekwai): Thank you, Mr Speaker. I rise to ask the Minister for Works, Housing and Water Resources what concrete plans are being implemented to attract private sector participation in housing delivery, including partnership with Ghana Real Estate Developers Association (GREDA) to address the housing needs of low- and middle-income earners? Thank you, Mr Speaker.

Mr Adjei: Mr Speaker, the Government's current policy on affordable housing aims to reduce housing costs to the bare minimum, with a particular focus on addressing the needs of low- to middle-income households. The policy recognises the pivotal role of the private sector in accelerating housing delivery nationwide.

Mr Speaker, the strategy is based on a Public-Private Partnership (PPP) framework, under which the

Government provides land and critical horizontal infrastructure, such as roads, drainage systems, electricity, water, and social amenities. Concurrently, private developers, particularly members of the Ghana Real Estate Developers Association (GREDA), are contracted to develop the vertical structures, namely housing units.

To facilitate the off-take of these units, the Ministry collaborates with Organised Labour Unions and Associations, connecting them directly with developers. This partnership aims to lower housing costs, making homes more affordable and accessible for most Ghanaians.

Mr Speaker, the Ministry of Works, Housing, and Water Resources upholds an inclusive approach by maintaining an open-door policy and actively engaging with the private sector, including GREDA.

This collaboration aims to explore innovative, sustainable, and mutually beneficial partnerships that will enhance housing delivery and substantially reduce the national housing deficit.

Thank you, Mr Speaker.

Mr Second Deputy Speaker: Thank you very much. Hon Poku-Adusei, is there any supplementary question?

Mr Poku-Adusei: Mr Speaker, given the fact that today we are challenged with time, I will not ask any follow-up questions and end it here. Thank you, Mr Speaker, for the opportunity.

Mr Second Deputy Speaker: Thank you very much. So, I will move to Question 505 which stands in the name of the Hon Member for Tema Central, Mr Charles Forson. Hon Member, you may take the floor now.

Reasons for no Water Flow in Tema Central

Mr Charles Forson (NPP — Tema Central): Thank you, Mr Speaker. I rise to ask the Minister for Works, Housing, and Water Resources the underlying reasons why water does not flow through our taps within the constituency in continuum. Thank you.

Mr Adjei: Thank you, Mr Speaker. Mr Speaker, the Ministry of Works, Housing and Water Resources, through Ghana Water Limited (GWL), continues to ensure that all parts of the Tema Metropolitan area, including the Tema Central Constituency, receive a regular, safe, potable water supply.

The Tema Central Constituency is supplied with treated water from the Kpong Water Treatment Plant through a 1,050-millimetre (42-inch) diameter transmission main to the Tema Booster Station, from where water is distributed to consumers within the constituency and adjoining communities.

Mr Speaker, to ensure equitable distribution of the available treated water, GWL implements an existing Water Demand Management Plan. Under this plan, supply is systematically scheduled to ensure all customers receive water within each supply cycle.

As part of this plan, water flows regularly to the Tema Central Constituency on Mondays, Tuesdays, and Wednesdays each week. On other days, water is routed to serve neighbouring zones within the Tema Distribution Area to ensure balanced service for all consumers.

Mr Speaker, to address this situation in the long term, the Ministry of Works, Housing, and Water Resources is considering implementing the Kpong Water Supply Expansion Project Phase II and the Aveyime Water Supply Project. These interventions, when completed, will increase water production to meet future demand projections.

5:58 p.m.

GWL, through the Ministry, is currently engaging some investors who have expressed interest in developing the projects with funding from donor partners.

Mr Speaker, the intermittent water flow in the Tema Central Constituency is attributable not to a shortage or crisis, but to a regulated operational strategy designed to ensure equitable water supply distribution in accordance with an established demand management schedule. However, unforeseen operational issues, such as power outages and significant pipeline bursts, occasionally disrupt the water management programme, resulting in deviations from the planned rationing schedule.

Mr Speaker, the Government remains committed to improving water transmission infrastructure to ensure an uninterrupted water supply in the medium to long-term.

Mr Second Deputy Speaker: Hon Forson, any supplementary questions?

Mr Charles Forson: Mr Speaker, no, thank you. I will discuss other matters with him backstage.

Mr Second Deputy Speaker: Hon Members, we will turn to the Question numbered 506, standing in the name of the Hon Member for Bortianor-Ngleshie Amanfro, Hon Felix Akwetey Okle.

Measures to Construct Outstanding Drainages in Bortianor-Ngleshie Amanfro Constituency

Mr Felix Akwetey Okle (NDC — Bortianor-Ngleshie Amanfro): Mr Speaker, I beg to ask the Minister for Works, Housing and Water Resources, the measures being taken to construct all outstanding drainages in the Bortianor-Ngleshie Amanfro Constituency.

Mr Adjei: Mr Speaker, the Ghana Hydrological Authority (HYDRO), under the Ministry of Works, Housing, and Water Resources, recognises the critical importance of improving drainage infrastructure in the Bortianor-Ngleshie Amanfro Constituency, particularly given recurring flooding caused by rapid urbanisation, encroachment on natural watercourses, and low-lying coastal terrain.

Mr Speaker, over the past few years, the Ministry, through HYDRO, has implemented several drainage interventions in the Ga South Municipal Assembly, including the Bortianor, Tuba, and Kuwait areas, despite limited budgetary allocation. Under the 2020 and 2023 National Flood Control Programme (NFCP), several priority drains were constructed and desilted to improve stormwater conveyance and reduce surface runoff and flooding. These include channel deepening, widening, and improvement works; concrete-lined channels; culvert replacements; and catchpit systems designed to trap silt at the foot of the hills near the Kasoa Tollbooth to enhance water flow efficiency, minimise erosion, and reduce floodwaters onto the Accra-Cape Coast Highway.

Mr Speaker, in the medium term, HYDRO has undertaken additional assessments to identify unresolved drainage deficiencies in the Bortianor-Ngleshie Amanfro area for incorporation into the subsequent phase of the National Flood Control Programme (NFCP) and other urban resilience initiatives, contingent on funding availability. Activities encompass mapping existing drainage systems, pinpointing bottlenecks, and integrating local flood data into the planning of new projects.

The next phase will focus on strategically extending and upgrading the drainage network to ensure continuity between constructed and unconstructed sections, particularly in downstream areas that remain prone to flooding during heavy rainfall.

Additionally, HYDRO is working to align its interventions with the institutions and agencies involved in the National Flood Early Warning and Response Framework, ensuring that completed drains complement broader flood-resilience and mitigation measures, including desilting, maintenance, and proper solid waste management.

Mr Speaker, the Ministry, through HYDRO, is actively pursuing funding arrangements to undertake these remaining works under a new National Flood Control Programme (NFCP) through targeted budgetary allocations and external partnerships. The Ghana Hydrological Authority will continue to engage the Assembly and local stakeholders to prioritise and sequence the critical sections for early implementation as funds become available.

Mr Speaker, the Ministry urges the Municipal Assemblies to ensure and enforce the Bylaws that restrict development in wetlands and floodplains. Land use and spatial planning within local authority areas must be reviewed by the relevant stakeholders to prevent development in buffer zones, encroachment into watercourses, and interference with natural drainage paths. Poor solid waste disposal practices and the presence of refuse in drainage systems significantly contribute to flooding, as blocked drains prevent water from flowing away during rainfall events.

Mr Speaker, the Ministry remains committed to progressively addressing all outstanding and priority drainage

projects in the Bortianor–Ngleshie Amanfro Constituency, subject to resource availability and the national flood mitigation plan.

Mr Second Deputy Speaker: Hon Okle, any further questions?

Mr Okle: Mr Speaker, I am satisfied with the response, and I do not have any further questions.

Mr Second Deputy Speaker: I will turn to the Question numbered 507, standing in the name of the Hon Member for Techiman South, Mr Martin Adjei-Mensah Korsah.

Mr Martin Adjei-Mensah Korsah: Mr Speaker, I come under Order 95 to seek your leave to withdraw the Question. I do so because, quite obviously, this must have been some administrative mix-up. The Question is under the District Road Improvement Programme (DRIP), but DRIP has nothing to do with the Ministry of Works, Housing and Water Resources, so there must have been some mix-up. I do so accordingly.

Mr Second Deputy Speaker: So, I will turn to the Question numbered 575, standing in the name of the Hon Member for Akim Oda, Mr Alexander Akwasi Acquah.

Mr Alexander Akwasi Acquah: Mr Speaker, I am told today is your birthday, let me take this opportunity to wish you a happy birthday. I hope you have enjoyed the day so far.

Mr Second Deputy Speaker: Thank you so much.

Contamination of Musuku River by Construction Works

Mr Alexander Akwasi Acquah (NPP — Akim Oda): Mr Speaker, I beg to ask the Minister for Works, Housing and Water Resources when the Ghana Hydrological Authority will pay attention to the construction works that started contaminating the Musuku River within the Kwabenya–Ashongman environs.

Mr Second Deputy Speaker: Hon Member, are you the Member of Parliament for Kwabenya–Ashongman Estate?

Mr Acquah: No, Mr Speaker, but I know I am asking this Question on behalf of about 30 or 40 Members of Parliament who live within that enclave.

Mr Second Deputy Speaker: Including myself.

Mr Acquah: Mr Speaker, I am aware that you are one of them.

Mr Adjei: Mr Speaker, let me also use the opportunity to wish you a happy birthday.

Mr Speaker, the Musuku Drain, located on the western side of the Odaw main channel in the Kwabenya–Ashongman enclave, is a key tributary of the Odaw catchment in the Ga East Municipality. The Ghana Hydrological Authority (HYDRO) is aware of the situation along the Musuku Drain in the

Kwabenya–Ashongman enclave, where unregulated construction activities have encroached on the natural watercourse, resulting in sedimentation, contamination, and reduced conveyance capacity.

Mr Speaker, I would want to inform the House that the downstream section of Musuku has been designated a key intervention area under the Greater Accra Resilient and Integrated Development (GARID) Project. A major drainage project has been planned for this area, including the construction of a detention pond in the Musuku Drain's downstream section to regulate stormwater peaks, control sediment, and improve the channel's hydraulic performance.

Preliminary designs and feasibility studies for the GARID project have already outlined integrated measures to restore the river's hydraulic capacity, control pollution, and prevent further encroachment. Upon completion of the necessary approvals, work will begin to rehabilitate the affected drain section and restore the ecological integrity of the Musuku River corridor.

In the interim, HYDRO continues to engage the Ga East Municipal Assembly and relevant stakeholders to curb indiscriminate solid waste dumping, enforce buffer zones, and coordinate routine desilting until the full-scale GARID intervention commences.

Mr Speaker, the Ministry assures the Hon Member and this august House that the Musuku River channel is part of the

priority drainage systems earmarked under the GARID framework to address both the structural and environmental challenges currently affecting the Kwabenya–Ashongman environs.

6:08 p.m.

Mr Second Deputy Speaker: Let me move to Krachi East, Hon Nelson Kofi Djabab?

You have the floor to ask Question 589 listed in today's *Order Paper*.

Commencement of the Dambai Water Project

Mr Nelson Kofi Djabab (NDC — Krachi East): Mr Speaker, I beg to ask the Minister for Works, Housing and Water Resources when the Dambai Water Project will commence.

Mr Adjei: Mr Speaker, the Krachi East Constituency is currently not supplied by Ghana Water Limited. The constituency is catered for by the Community Water and Sanitation Agency. However, due to the expansion and the urbanisation of the area, notably Dambai, Ghana Water Limited, as part of its strategic projects, has started engagements with potential investors for the development of the Dambai Water Supply Project.

Mr Speaker, the Dambai Water Supply Project is expected to deliver the following outputs;

1. Construction of a raw water intake structure, complete with low-lift pumps.

2. Construction of 11,500 cubic metres per day conventional water treatment plant, complete with aerator, clarifiers, filters, and clear water storage for Dambai.

3. Construction of about 34.5 kilometres of treated water transmission pipeline and distribution network of approximately 1 to 5 kilometres.

The Dambai Water Supply Project is intended to improve water supply mainly to Dambai, Chambakura, Kparekpare, and adjoining communities. The project is envisaged to supply water to over 100,000 people living in the supply area.

Mr Speaker, the project has received a unique code following the submission of a project concept note to the Ministry of Finance. The feasibility study is far advanced and nearing finalisation. The finalised feasibility study will be submitted to the Ministry of Finance in accordance with Regulation 9(a) of the Public Financial Management Regulations, 2020, for approval and subsequent issuance of the seal of quality. This certification will enable the project to qualify for funding under the Ministry of Finance portfolio of priority projects.

Mr Speaker, the commencement of the project will depend on the following key activities: the finalisation of the feasibility study, the issuance of the seal

of quality by the Ministry of Finance, Cabinet and parliamentary approvals, value for money assessment, signing of the financial agreement or commitment by the Ministry of Finance, and the award of the contract.

Mr Speaker, it is envisaged that once all these activities have been undertaken, the project should commence within the current medium term.

Thank you.

Mr Second Deputy Speaker: Thank you very much.

Hon Member for Krachi East, I suppose you also do not have any supplementary questions.

Mr Djabab: Mr Speaker, I do not have any supplementary questions.

Mr Second Deputy Speaker: Very well.

Hon Members, we would take the last Question listed 624, by Hon Sanja Nanja from Atebubu/Amantin Constituency.

Hon, you have the floor now.

Measures to Curb Perennial Water Crisis in Atebubu Township

Mr Sanja Nanja (NDC — Atebubu/Amantin): Mr Speaker, I beg to ask the Minister for Works, Housing and Water Resources what measures are

being implemented to curb the perennial water crisis in the Atebubu township.

Mr Adjei: Mr Speaker, the Atebubu-Amantin Township is currently not within Ghana Water Limited's (GWL) operational areas. The water supply system in the constituency is a community-managed scheme. However, due to rapid growth and ongoing urbanisation in Atebubu, the Ministry, through GWL, has initiated steps as part of planned projects to address increased water demand in Atebubu-Amantin and the surrounding areas. In line with this, the Ministry, through Ghana Water Limited, engaged prospective investors to develop the Atebubu-Amantin Water Supply Project.

Mr Speaker, the Atebubu-Amantin Water Supply Project is a major water infrastructure initiative to improve potable water supply for Atebubu-Amantin, and surrounding communities in the Bono-East Region. The project is expected to supply water to more than 100,000 people in the supply area.

Mr Speaker, the Atebubu-Amantin Water Supply Project is expected to include the following:

1. Construction of a weir and intake facility of capacity 31,000m³/day (6.8 million gallons of water per day).
2. Supply and laying of a 900mm raw water pipeline.

3. Construction of a new 28,000m³/day (6.2 million gallons of water per day) conventional Water Treatment Plant (WTP).
4. Design and construction of 80km of treated water transmission pipeline.
5. Construction of water reservoirs and booster pumping stations.
6. Laying of 100km distribution network within beneficiary communities.
7. Undertake the supply of water to about 5,000 households (customers).
8. Provision of 100 standpipes within beneficiary areas.
9. Construction of staff accommodation, district office, laboratory, chemical storage buildings, administration building, workshop, and other ancillary structures.

Mr Speaker, in February 2023, the project development activities commenced in earnest. The following key activities have been undertaken to date:

- a. Comprehensive assessment of the contractor's capacity to execute the project
- b. Acceptance of the feasibility studies by the Ministry of Finance (MoF) and

- c. Issuance of the "Seal of Quality,"

This confirms that the necessary standards and requirements have been met.

Mr Speaker, it is important to note that the project development activities were, however, suspended due to financing constraints arising from Ghana's debt restructuring programme. As a result, progress toward value for money (VFM) clearance and securing tax-exemption approvals has been significantly delayed.

Mr Speaker, the Ministry has recently instructed GWL to recommence project development activities and collaborate with relevant stakeholders to address unresolved issues.

Thank you, Mr Speaker.

Mr Second Deputy Speaker: Hon Sanja Nanja, any supplementary question? Yes, let us hear you.

Mr Nanja: Mr Speaker, I want the Minister to give us information on where the booster station or the pumping station will be located.

Mr Second Deputy Speaker: Yes, Minister, do you have that information?
—

Hon Sanja Nanja, this will be a technical question, and I believe the Minister may not be able to know the location off-hand.

Mr Nanja: Thank you, Mr Speaker. I have no further supplementary questions except to thank the Minister for the detailed Answer and firm assurance.

Mr Second Deputy Speaker: Thank you very much. Hon Minister, on behalf of the House, let me extend our appreciation to you for attending upon the House to respond to Members' Questions. We appear to be satisfied with your Answers. So, you are hereby discharged.

Leadership, are we constituting a Committee of the Whole?

6:18 p.m.

Mr Richard Acheampong: Very well, Mr Speaker. So, we will take the GETFund formula.

Mr Second Deputy Speaker: So, Hon Members, we are constituting the House into a Committee of the Whole to welcome the GETFund Administrator. I guess the Minister for Education is not around, so the Deputy Minister for Education and the staff from the GETFund are welcome. The House is hereby constituted into a Committee of the Whole. *[Pause]*

6:22 p.m. — *[The House constituted into a Committee of the Whole.]*

7:01 p.m. — *Sitting resumed.*

[HON FIRST DEPUTY SPEAKER, MR BERNARD AHIAFOR, IN THE CHAIR]

Mr First Deputy Speaker: Hon Members, kindly take your seat.

Hon Majority Leader, do we take the consequential Motions per the *Order Paper Addendum*?

Mr Mahama Ayariga: That is so, Mr Speaker. We will take the consequential Motions.

Mr First Deputy Speaker: Hon Members, since the Hon Second Deputy Speaker chaired the Committee of the Whole, I will call on him to move the Motion numbered 2 on the *Order Paper Addendum*.

Mr Ayariga: Mr Speaker, should we not be laying the Report of the Committee of the Whole?

Mr First Deputy Speaker: Yes, very well. At the commencement of Public Business, the item numbered 1(b). Chairperson of the Committee?

PAPER

By the Chairperson of the Committee —

Report of the Committee of the Whole on the Proposed Formula for the Disbursement of the Ghana Education Trust Fund for the Year 2026.

Mr Ayariga: Mr Speaker, we will take item number 2, which is the Motion for abridgment of time.

MOTION

Suspension of Standing Order 104(1)

Chairperson of the Committee (Mr Andrew Asiamah Amoako): Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a Motion shall not be debated until at least two sitting days have elapsed after the notice to move the Motion is given, the Motion for the adoption of the Report of the Committee of the Whole on the Proposed Formula for the Disbursement of the Ghana Education Trust Fund for the Year 2026 may be moved today.

Chairperson of the Committee on Education (Mr Peter Nortsu-Kotoe): Mr Speaker, I second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

Mr First Deputy Speaker: Hon Members, do we take Motion numbered 3?

Chairperson of the Committee do you have the Report? This is a consequential Motion.

MOTION

Proposed Formula for Disbursement of GETFund, 2026

Chairperson of the Committee (Mr Andrew Asiamah Amoako): Mr Speaker, I beg to *move*:

That this honourable House adopts the Report of the Committee of the Whole on the Proposed Formula for the Disbursement of the Ghana Education Trust Fund for the Year 2026.

Mr Speaker, I present the Report of the Committee and I urge the *Hansard* to capture the Report as being read in full while I capture the salient areas.

Introduction

The Proposed Formula for the Distribution of the Ghana Education Trust Fund (GETfund) for the year 2026 was presented to Parliament on Tuesday 24th February, 2026 by the Hon Deputy Minister for Education, Dr Clement A. Apaak, pursuant to section 8(2) of the Ghana Education Trust Fund Act, 2000, (Act 58 1).

In accordance to Order 261 of the Standing Orders of the House, the Hon Second Deputy Speaker referred the Proposed Formula to the Committee of the Whole for consideration and report. The Committee met on Tuesday, 24th February, 2026, and considered the referral.

The Committee expresses its appreciation to the Hon Deputy Minister for Education, Dr Clement A. Apaak, the Administrator of the GET Fund, Dr. Paul Adjei and officials of the GETFund for attending upon the Committee.

Reference Documents

The Committee, in preparing its Report, availed itself of the following documents:

- i. The Standing Orders of the House
- ii. The Ghana Education Trust Fund Act, 2000 (Act 581)
- iii. Earmarked Funds Capping and Realignment Act, 2017 (Act 947)
- iv. The Ghana Education Trust Fund (Amendment) Act, 2018 (Act 972)
- v. The Proposed Formula for the Distribution of the GETFund for the year 2025
- vi. The Report of the Committee of the Whole on the Proposed Formula for the Distribution of the GETFund for the year 2025, and
- vii. The Proposal Formula for the Distribution of the

GETFund for the year 2026.

Background

Section 8(2) of the Ghana Education Trust Fund (GET Fund) Act (Act 581) mandates the Board of Trustees of the GETFund to submit annually to Parliament for approval, a Formula for the distribution of funds in respect of the following:

- a) Tertiary Education
- b) Second-Cycle Education
- c) Basic Education
- d) Investment
- e) Other related aspects of education such as distance education, school and public libraries and special education.

Section 8(3) of the GETFund Act (Act 581) further requires the Board of Trustees of the Fund to take into account, some crucial factors to the delivery and development of education in preparing the Formula for the distribution of the Fund. These relevant factors are:

- i. Promotion of the study of Mathematics, Science and Technology

- ii. Advancement of female education
- iii. Reduction in the high level of illiteracy in historically disadvantaged areas
- iv. Promotion of Computer, Vocational/Technical Education and Training
- v. Equitable allocation of funds to the Districts at the Pre-Tertiary level of education.

Together with the related critical factors, the structure of spending was calibrated to support and achieve expansion of access, improvement of quality, and bridging the social and spatial gaps that tend to generate inequities in the education sector, especially at the pre-tertiary level and, also in deprived and hard to reach communities.

The allocations to the Fund are made based on the Government's Annual Budget Statement and Economic Policy approved by Parliament for the 2026 fiscal year in accordance with the GETFund Act 2000, (Act 581) as amended by Act 972, and the Earmarked Funds Capping and Realignment Act 2017, (Act 947).

2025 Performance Review Total Expected Inflows

In the 2025 fiscal year, the total expected inflows as approved by this House for was Ten Billion, Three Hundred and Eighty-Five Million, Six Hundred and Four Thousand Ghana Cedis GH¢10,385,604,000.00. This was made up of balance brought forward from 2024 fiscal year, GETFund levy allocated and residual assets from the Daakye Trust fund.

2024 Arrears

An amount of GH¢1,613,694,885 was brought forward from 2024 out of which a total of GH¢165,449,464 has so far been received as of 31st December 2025, leaving a balance of GH¢1,448,245,421.

GETFund Levy

An amount of GH¢1,613,694,885 was allocated to the GET Fund for the 2025 fiscal year. Total amount received as at 31st December 2025, was GH¢6,209,650,238.00 leaving a balance of GH¢2,362,258,762.00.

Daakye Trust PLC Residual Assets

An amount of GH¢200,000,000 was projected to accrue from residual assets of Daakye Trust Plc following its winding down. But the actual amount so far received is GH¢150,000,000. This is largely because the winding down process is yet to complete.

Table I below shows details of amounts received during the year.

Table 1. Status of 2025 Amounts Received from CAGD and Daakye

PERIOD	AMOUNT DUE	AMOUNT RECEIVED	AMOUNT OUTSTANDING
2024 Balance B/F	1,613,694,885.00	165,449,464.00	1,448,245,421.00
2025 Allocation	8,571,909,000.00	6,209,650,238.00	2,362,258,762.00
Daakye Assets	200,000,000.00	150,000,000.00	50,000,000.00
TOTAL	10,385,603,885.00	6,525,099,702.00	3,860,504,183.00

From the table I above, a total amount of GH¢3,860,504,183 was outstanding as of 31st December, 2025.

that the company had met all its tax obligations.

Daakye Bond Programme

Disbursement of Funds

As reported in the 2025 report that processes were on going to liquidate Daakye Trust Plc. The only thing outstanding now is a letter from the Ghana Revenue Authority certifying

In the 2025 fiscal year, an amount of GhC6.012 billion was disbursed with a total outstanding liabilities of GH¢2,109,693,472.78 as shown in table 2 and 3 below respectively.

Table 2. Summary of Disbursement as at 31st December 2025

SECTOR	ALLOCATION (GH¢)	ACTUAL (GH¢)
Debt Service	106,339,000.00	106,230,000.00
Tertiary	1,548,095,000.00	1,216,700,000.00
Second Cycle	6,789,604,000.00	3,506,218,000.00
Basic	1,340,516,000.00	597,373,000.00
Others	481,050,000.00	468,908,000.00
GETFund Admin	120,000,000.00	116,350,000.00
Total	10,385,604,000.00	6,011,779,000.00

Table 3. Total outstanding liabilities as at 31st December, 2025

	Amount
Tertiary	89,517,776.13
Secondary	1,900,025,962.70
Basic	82,542,917.05
Others	37,606,816.90
Total	2,109,693,472.78

Some Funded Projects and Programmes in 2025

For the year 2025, some projects and programmes were funded by GETFund and they are at various stages of completion. The projects and programmes include:

1. Construction and completion of academic facilities in the various public tertiary institutions;
2. Completion and rehabilitation of Dormitories, Classrooms, Dining Halls and other facilities at various Senior High Schools;
3. Supply of classroom furniture as well as beds and mattresses to various schools;

4. Funding of Free SHS
5. Payment for supply of tablets to Senior High Schools
6. Sponsorship of students to pursue various programs both locally and abroad.

Outlook for The 2026 Fiscal Year

For the 2026 fiscal year, an amount of GH¢9,872,325,805 was allocated to the GETFund for the funding of projects and programmes across the various subsectors of education. The structure of spending in this Formula is aligned to the Government's Education Sector Priority Projects and Programmes while focusing on the settlement of arrears and the completion of on-going projects across the various sub-sectors of education,

An amount of GH¢161.04 million has been provided towards the servicing of the syndicated loans (outstanding balance of Gh¢215 million).

Sub-Sectoral Allocation

Tertiary

Tertiary Sub-Sector has been allocated 15.95 per cent (GH¢1.575 billion) of the total available inflows to support a range of activities and interventions.

Part of this allocation will cater for continuing students under the GETFund scholarship scheme and the award of new sponsorships for students to pursue various programmes locally and abroad, and an amount of GH¢300 million has been allocated for disbursement in 2026. The details of tertiary allocations can be found in Appendix I.

Secondary Education

This Sub-Sector has also been allocated 61.87 per cent (Gh¢6.108 billion) of total spending for the year 2026. An amount of GH¢4.2 billion has been allocated to cater for funding of the Free SHS. Significant amounts have been allocated for the completion of second cycle projects and programmes including E-Blocks and

Model schools. This will enable the Government to eliminate the double track system in the Senior High Schools

Details of second cycle allocations can be found in Appendix I.

Basic Education

A total allocation of 9.31 per cent (GH¢919.5 million) of total projected spending from the available funds has been made for funding of various projects and programs in Basic Education. Out of this, an amount of GH¢230 million of spending within this Sub-Sector is towards completion of Basic school infrastructure.

It is important to note that due to the deficit in Basic School infrastructure, namely classrooms, and toilet facilities, including rehabilitation of existing structures, a total amount of GH¢310 million has been allocated in the 2026 Formula to construct new facilities. A further amount of GH¢60 million has been allocated to procure furniture for basic schools to reduce the furniture deficit.

Others

A total of 9.52 per cent (GH¢940 million) of total projected spending has been allocated to the Ministry of

Education and Institutions and Agencies within the Education

Sector and the Youth Employment Agency (YEA). This includes allocations for the GETFund operations, and the Scholarship Secretariat. For the first time, the Ministry of Education (MOE) Emergency Budget line has been created to allow the Ministry to deal with emergency situations in our schools. A significant amount of GHC100 million has also been allocated to support the Special Needs Educational and Disability infrastructure.

Observations and Recommendations Strengthening Supplementary Funding for Priority Educational Initiatives

The Committee commended the Fund for its sustained commitment to prioritising education across all levels in Ghana. It noted that substantial allocations have been directed toward critical areas within the sector, reflecting a comprehensive and inclusive approach to improving teaching and learning conditions nationwide. These interventions include the provision of furniture for basic schools, rehabilitation of

dilapidated school infrastructure, enhancement of early childhood education, integration of ICT into classrooms, support for special needs education, and the implementation of Smart Schools (STEM Sets) programmes, among others, as detailed in Appendix I.

Notwithstanding these commendable efforts, the Committee observed that furniture shortages in schools remain a persistent and pressing challenge. Addressing this issue, the Committee emphasised the need for not only increased financial investment, but also rigorous due diligence in procurement processes. The Committee also underscored the need to ensure that furniture supplied to schools meets high standards of durability and quality, noting that sub-standard procurement practices in the past have contributed to recurring shortages and inefficiencies.

Allocation for the Completion of the GETFund Head Office Building

The Committee observed that an allocation of 0.10 per cent, amounting to GHC10,000,000 has been earmarked for the completion of the GETFund Head Office Building and the construction of satellite regional offices. The Committee was informed that the Fund is currently

experiencing infrastructural constraints.

It noted that completing this central administrative facility and regional offices is essential to enhancing the operational efficiency and coordination of the Fund's nationwide activities.

Financing Disparity between Basic and Secondary Education

The Committee observed a disparity in allocations between basic and secondary education within the Distribution Formula. Upon further engagement, it was clarified that the imbalance stems from the transfer of the financing responsibility for the Free Senior High School (Free SHS) policy from the Heritage Fund to GETFund.

The Committee noted that this structural adjustment should not be interpreted as a deliberate underinvestment in basic education, but rather as a reallocation of financial responsibilities to sustain the Free SHS programme. The attention of the Committee was however drawn to other funding sources for basic education such as the Ghana Accountability for Learning Outcomes Project (GALOP). It emphasised that the importance of maintaining adequate investment in basic education cannot be overstated. As it plays a critical

role in ensuring access, equity, and quality learning outcomes in the foundation of our educational system.

The Committee therefore recommends continuous monitoring and periodic review of the Distribution Formula to guarantee equitable resource allocation across all levels of education.

Establishment of a Contingency Allocation for Unforeseen Expenditures

The Committee noted that an amount of GH¢8 million has been allocated within the Distribution Formula to cater for contingencies. It acknowledged this as a commendable and forward-looking initiative, particularly as it represents the first allocation of its kind.

The Committee emphasised that the establishment of a contingency provision is a prudent financial management measure. It creates a buffer to address unforeseen circumstances that may arise, thereby preventing disruptions to planned educational programmes and commitments.

The Committee further noted that such proactive financial planning strengthens institutional resilience and enhances the Fund's ability to respond effectively to

emerging challenges without compromising its core mandate,

Outstanding Arrears and Delayed Disbursement for TVET Fund Operationalisation

The Committee observed delayed disbursement allocation in 2025 for the operationalisation of the Technical and Vocational Education and Training (TVET) Fund remains unutilised. It was informed that this situation resulted from the non-release of the earmarked funds by the Ministry of Finance.

The Committee expressed serious concern that the delay in disbursement undermines the effective implementation of TVET initiatives, which are critical to skills development, youth employment, and national economic transformation.

The Committee accordingly urges the Ministry of Finance to take immediate steps to ensure the timely release of the outstanding funds. It emphasised that adequate and prompt financing is indispensable for strengthening TVET infrastructure, expanding access, and equipping learners with industry-relevant skills necessary for Ghana's socio-economic development.

Provision of Charging Infrastructure for ICT Devices (Tablets) in Schools

The Committee observed that while the distribution of ICT Devices (Tablets) to schools is a commendable initiative aimed at promoting digital learning, the effectiveness and sustainability of this intervention depend significantly on the availability of reliable charging systems. In many beneficiary schools, particularly those in underserved and rural communities, access to stable electricity remains a challenge.

Accordingly, the Committee recommends that adequate provisions be made for charging infrastructure to accompany the supply of laptops and related ICT equipment. This may include the installation of dedicated charging stations, solar powered charging systems, or other sustainable energy solutions where grid electricity is unreliable. The Committee emphasised that integrating charging solutions into ICT distribution plans will safeguard the investment, prevent equipment underutilisation, and ensure the long-term success of digital learning initiatives.

Strengthening Project Monitoring and Contractor Selection

The Committee emphasised the need for the Ghana Education Trust Fund (GETFund) to intensify monitoring and supervision of all funded projects across the country. It noted that effective project oversight, is critical to ensuring timely completion, adherence to specifications, and value for money in the utilisation of public funds.

The Committee further recommends that contracts should be awarded strictly to competent, experienced, and devoted contractors with proven track records of performance and integrity. It highlighted that due diligence in contractor selection must be strengthened to minimise project delays, cost overruns, and substandard execution.

Tracking Past GETFund Scholarship Beneficiaries and Alumni Contributions

The Committee observed that over the years, the Ghana Education Trust Fund (GETFund) has awarded scholarships to thousands of Ghanaian students across the world, many of whom are now gainfully employed and contributing meaningfully to national development.

The Committee noted that these past beneficiaries constitute a valuable network of potential partners and contributors to the sustainability of the Fund.

The Committee was further informed that GETFund is in the process of establishing a dedicated support mechanism, including the development of a digital application and short code platform, to facilitate voluntary contributions and enhance engagement with past beneficiaries.

While commending this initiative, the Committee recommended that GETFund develop a comprehensive alumni tracking and engagement strategy to maintain an updated database of scholarship recipients. It emphasised that structured alumni engagement, supported by transparent governance and clear contribution frameworks, will strengthen accountability, foster a culture of giving back, and provide an additional sustainable funding stream to support future generations of students.

Completion of Abandoned E-Blocks and Provision of Boarding Facilities

The Committee observed with concern that a number of E-Block Community Day Senior High School projects across the country

remain uncompleted or abandoned, thereby limiting their intended impact on access to secondary education. The continued delay in completing these facilities undermines efforts to expand infrastructure and ease congestion in existing schools.

The Committee therefore recommends that priority be given to the completion of all abandoned E-Block projects to ensure their full operationalisation. In addition, the Committee advised that, upon completion, consideration should be given to the incorporation of boarding facilities where feasible.

The Committee noted, that the inclusion of boarding facilities, will enhance access for students from distant and underserved communities, improve retention rates, and maximise the utilisation of these educational investments.

Conclusion

I having examined the Distribution Formula for the Fund for the year 2026, the Committee believes that GETFund Distributing Formula has allocated fairly the resources across the various levels of education in line with Government's objective of improving access, equity and quality of education delivery.

The Committee therefore recommends to the House to adopt its Report and approve the sum of Nine Billion, Eight Hundred and Seventy-Two Million, Three Hundred and Twenty-Five Thousand, Eight Hundred and Five Ghana Cedis (GH¢9,872,325,805.00) for the year 2026 in line the Distribution Formula.

Respectfully submitted.

APPENDIX I

DISTRIBUTION FORMULA - GETFUND 2026		
	2026	
	(GHC' 000)	%
REVENUE		
Revenue Allocation from MOFA	9,872,326	100.0
Total Expected Revenue	9,872,326	100.0
SUB-SECTOR ALLOCATION LONG TERM LOAN FACILITY		
Debt Service Account (Syndicated Loans)	161,037	1.63
	161,037	1.63
TERTIARY EDUCATION		
Completion of Tertiary On-going Projects	300,000	3.04
Academic Facilities & Infrastructure - Priority/New	100,000	1.01
Support for New Universities	15,000	0.15
Upgrade of TVET Workshops - Technical Universities	20,000	0.20
Scholarships (Continuing Students and New)	300,000	3.04
Students Loan Trust Fund	200,000	2.03
Faculty Development & Research	20,000	0.20
Completion of Hostels in Colleges of Education	120,000	1.22
National Defence University	25,000	0.25
Legal Education Support	25,000	0.25
Free Tertiary Education for Persons with Disability	50,000	0.51
Procurement of Equip. for the New KNUST Teaching Hospital and Completion of Project	400,000	4.05
Sub-total	1,575,000	15.95
SECOND CYCLE EDUCATION		
Completion of SHS On-going Projects	500,000	5.06
New SHS Targeted & Emergency Projects,	100,000	1.01
Completion of Community Day SHS (E-Blocks)	160,000	1.62
Free SHS Budget	4,200,000	42.54
Rehabilitation of Dilapidated Structures	50,000	0.51
Completion of On-going Model SHS	65,000	0.66
SHS Laboratory Equipment & Chemicals	65,000	0.66
Furniture - Bunk Beds & Mattresses	110,000	1.11
Science Technology Engineering & Mathematics (STEM)/AIMS/IEPA	3,000	0.03
Smart School (STEM sets)	50,000	0.51
Sanitary Pads for Girls in SHS	25,000	0.25
Solar Charging Systems for Tablets	80,429	0.81
Tablets for SHS/TVET - Arrears	700,000	7.09
Sub-total	6,108,429	61.87

BASIC EDUCATION		
Completion of On-going Basic School Projects	230,000	2.33
New Basic School Projects	200,000	2.03
Construction of New KG Classrooms	30,000	0.30
Textbooks	180,000	1.82
Furniture for Basic Schools	60,000	0.61
Uniforms for Pupils/students	40,000	0.41
Water and Sanitation for Schools (Boreholes & Toilets)	35,000	0.35
Early Childhood Learning ICT	60,000	0.61
Rehabilitation of Dilapidated Structures	80,000	0.81
Promotion of French	3,000	0.03
Special Programs to promote Girl Child Education and Maths/Science	1,500	0.02
Sub-total	919,500	9.31
OTHERS		
Ministry of Education Emergency Interventions	197,000	2.00
Ministry HQ and Agencies	88,000	0.89
Scholarship Secretariat	12,000	0.12
Construction of GETFund Office Building	10,000	0.10
Special Needs Education	100,000	1.01
GETFund Operational and Monitoring Costs	200,000	2.03
Youth Employment Agency	300,000	3.04
Ghana Library Authority	20,000	0.20
Ghana Academy of Arts and Sciences	5,000	0.05
Contingencies	8,000	0.08
Sub-total	940,000	9.52
MEMBERS OF PARLIAMENT		
MPs Emergency Projects	96,600	0.98
MPs Monitoring	55,200	0.56
MPs Educational Coordinators	16,560	0.17
Sub-total	168,360	1.71
GRAND TOTAL	9,872,326	100

Chairperson of the Committee on Education (Mr Peter Nortsu-Kotoe):

Mr Speaker, I second the Motion. In doing so, I want to add that the Committee on Education had the opportunity to go through the formula. We believe that all that has been presented at the Committee of the Whole is very much known to the Committee. We urge the House to approve the formula for GETFund for 2026.

Thank you, Mr Speaker.

Question put and Motion agreed to.

Resolved:

This House has approved the formula for the disbursement of the Ghana Education Trust Fund for the year 2026.

Mr First Deputy Speaker: Yes, Majority Leader?

Mr Ayariga: Mr Speaker, I was hoping that after commending Members for indulging us, sitting till this time to have us pass the formula for the GETFund, we could take a few clauses of the Legal Education Bill, 2025. Let me find them from my Friends opposite—
[Interruption] We should carry on, is that not so?

Mr Fred Kyei Asamoah: Because today is the birthday of the Second Deputy Speaker and having worked through the passing of the GETFund

formula— The birthday boy said 5:00 p.m. so I agree.

7:11 p.m.

BILL — CONSIDERATION STAGE

Legal Education Reform Bill, 2025

[Resumption of Consideration from 20/02/2026]

Clause 33 – Restoration of suspended accreditation license

Mr Shaibu Mahama: Mr Speaker, clause 33 up to 46 are all amendments standing in the name of the Minority Leader. He is not available to move them.

Mr First Deputy Speaker: Does any Member have the authority to move the proposed amendments?

Dr Fred Kyei Asamoah: Mr Speaker, not now. So, we would want to continue with where we got to.

Mr First Deputy Speaker: Very well. What we said was that if he is strongly convinced about it, he can come again at the Second Consideration stage. So, I do not know why it is appearing on the Order Paper. So, we move to clause 50 since clause 43 and 44 are all standing in his name. So, we have to take clause 47 and 48. I understand we did not put a question on them.

Clauses 47 and 48 ordered to stand part of the Bill.

Clause 49 – Form of and standards for examination.

Mr S. Mahama: Mr Speaker, there is no proposed amendment as we find here. I think we took that one the last time.

Mr John Darko: Mr Speaker, the last time we made some amendment, but I do not know whether they were accepted. We proposed that the “assessment of the law programme” should rather read the “assessment of the law student”.

Mr First Deputy Speaker: Yes, that amendment was carried out. I think today we should have moved straight away from clause 50, because the subsequent ones were standing in the name of the Minority Leader. So, I think we put the question on that amendment and it was carried.

Mr S. Mahama: Rightly so, Mr Speaker. We should move from clause 50.

Clause 50 – Grading standards

Mr S. Mahama: Mr Speaker, clause 50. If we have our winnowed document, it is clause 52, and the original one is clause 50. That is “Grading standards”.

Mr Speaker, amendment proposed – Subclause (3), *delete* and *insert* the following:

“(3) A university that runs a law programme shall ensure consistency in the application of

the written grading standards by the law lecturers of the law programme.”

Mr First Deputy Speaker: The new insertion is “A university that runs a law programme”. At the end, they put “assessment” there. Chairperson, I believe that is the difference.

Mr S. Mahama: Very well, Mr Speaker.

Question put and amendment agreed to.

Mr First Deputy Speaker: Chairperson, we have an amendment to clause 52 (1) which is clause 50 (1).

Mr S. Mahama: That is the only amendment under clause 50.

Mr First Deputy Speaker: If you look at the original document, clause 50 (1) says “a person in charge of a law degree”, and you are substituting it with “a university that runs a law programme”. So, that is the amendment, though not on the Order Paper, you have to move. It is consequential anyway.

Chairperson, you rightly indicated that clause 50 in the original document is clause 52. And there is an insertion in italics which is the amendment to clause 50 (1). So, you have to move that amendment to clause 50 (1).

Mr S. Mahama: Mr Speaker, in clause 50 (1), amendment is to substitute “a person in charge of a law degree programme” with “a university that runs

a law programme”. Mr Speaker, I so move.

Mr First Deputy Speaker: Hon Members, the proposed amendment is to *delete* “A person in charge of the law degree programme of a university”, and substitute it with “A university that runs a law programme”. So, the new rendition will be:

“A university that runs a law programme shall adopt in writing, uniform grading standards that ensure accuracy, validity, reliability and consistency in the evaluation of student performance in assessment.”

Question put and amendment agreed to.

Mr Darko: Mr Speaker, it appears that at the last Sitting, we had an issue with clause 50 (2), and we had a running debate. We believe that if it is actually *deleted*, it will not harm anybody. But if we leave it as it is, we believe that it was going to cause a lot of problems for the lecturers. I think on this, the Chairperson of the Committee is in agreement with me.

Mr First Deputy Speaker: So, move the amendment.

Mr Darko: My amendment is that clause 50 (2) of the winnowed document be *deleted*.

Mr First Deputy Speaker: Hon Member, the proposal is to *delete* it. It is for your consideration?

7:21 p.m.

Mr S. Mahama: Yes, Mr Speaker, I think I agree with my Colleague.

I have had some discussion with Prof Atuguba on this. He thinks that we can regulate under the Regulations.

Question put and amendment agreed to.

Clause 50(2) ordered to be deleted from the Bill

Question put and amendment agreed to.

Clause 50 as amended ordered to stand part of the Bill.

Clause 51 — Review of grades

Mr First Deputy Speaker: Chairperson of the Committee?

Mr S. Mahama: Mr Speaker, I beg to move, *delete* and *insert* the following:

“Review of grades

- (1) A student who is dissatisfied with a grade of an assessment may apply to the university for a review of the grade.

- (2) A university that runs a law programme shall establish written procedures for processing a request for the review of a grade of an assessment by a student.”

Mr First Deputy Speaker: Hon Members, the proposed amendment is for your consideration. Hon Patrick Boamah?

Mr Patrick Y. Boamah: Mr Speaker, I do not have a problem with the proposed amendment save that, I have seen an advertised amendment to clause 51 (2). Mr Speaker, I was of the view that the university that runs a law programme shall establish written procedures first to enable a student to seek a review. So, I was thinking that clause 51 (2) should rather become clause 51 (1) and clause 51 (1) should become clause 51 (2). Because the university must first establish the procedures for review of grades to enable the student to make an application for a review should that student fail or have some dissatisfaction with their grades.

I would want the Chairperson of the Committee to take a closer look at that.

Mr First Deputy Speaker: Well, it is arguable. Some will argue that a right must be created first.

Mr S. Mahama: Mr Speaker, rightly so.

Mr First Deputy Speaker: You create a right, then you follow the procedure in exercising the right.

Mr S. Mahama: The right is created first before you can exercise that, and so clause 51 (1) creates the right. So, it says:

51. “(1) A student who is dissatisfied with a grade of an assessment may apply to the university for a review of the grade.

(2) A university that runs a law programme shall establish written procedures for processing a request for the review of a grade of an assessment by a student.”

I think this order is fine.

Mr First Deputy Speaker: Yes, I think Hon Member, it is amenable.

Question put and amendment agreed to.

Clause 51 as amended ordered to stand part of the Bill.

Clause 52 — Teaching method

Mr S. Mahama: Mr Speaker, I beg to move, opening phrase, line 1, *delete* “A person in charge of the law degree programme of a university” and *insert* “A university that runs a law programme”.

Mr First Deputy Speaker: Hon Members, Clause 52 is Clause 54 in the incorporated document. Chairperson, I expect you to be doing that.

Question put and amendment agreed to.

Mr S. Mahama: Mr Speaker, I beg to move, paragraph (b), line 1, delete “books on” —

Dr F. K. Asamoah — *rose* —

Mr First Deputy Speaker: Chairperson, hold it.

Dr F. K. Asamoah: Mr Speaker, with the amendment proposed by the Chairperson of the Committee, I would want us to ask what he thinks. If you look at the content for the curriculum, it talks about information technology. But when it comes to the methodology, we are missing the methodology that will help us bring out the information technology, which is a crucial part of legal practice nowadays. I know we have research skills, analysis of real cases, drafting of legal documents, making oral arguments and client relations, but if you look at the methodology, we do not have one that is catering for information technology.

So, I was proposing that we could add modern Information Technology (I.T.) Legal Practice so that it can take care of the methodology. I do not know what the Chairperson of the Committee thinks.

Mr First Deputy Speaker: Chairperson of the Committee?

Hon F.K. Asamoah, I think I will engage you on this. Why do you want to use adjectives in drafting? Which one is archaic I.T. and modern I.T.? We do not use adjectives in drafting.

Dr F. K. Asamoah: Mr Speaker, respectfully, I know that about 10 years ago, people used to use just Microsoft, Outlook, and other things. Now, things are changing and we are using Artificial Intelligence (A.I.).

Mr First Deputy Speaker: What of 10 years after? 10 years later, will you come to amend the law?

Dr F. K. Asamoah: Mr Speaker, that is why the word modern becomes significant here.

Mr First Deputy Speaker: That is the difficulty when you use adjectives in drafting. That is why I am asking you, if after five or six years, it is outmoded, and there is another version, do you come to amend the law? Because you must pass a law that will stand the test of time. What is modern for you will be archaic for somebody.

Mr Darko: Mr Speaker, if we put modern I.T., in 10 years, there will be modern I.T. at the time. So, it will not be archaic. In 10 years, the new I.T. solution —

Mr First Deputy Speaker: The use of the adjective, who determines whether this is modern or this is not? Hon Members, let us not change the drafting rules. It will be novel for us to be using adjectives in our drafting. That creates a problem. So, can a student go to court and say that I was taught I.T., but what I was taught is not modern?

Dr F. K. Asamoah: Mr Speaker, I agree with you that we do not want to use adjectives in drafting, but it is very

critical that when we are stressing teaching methodology, we mention it in the content. It is critical that it finds its way as part of the methodology so that it can be enforced. Because if we are giving all the other methodologies as one of the tools and we are leaving I.T. out, then of course, we will be missing. So, the content will not be enforced here. Other than that, we do not need the teaching methods. It could have found its way into the Regulations. But if we are legislating the teaching methods, then I.T. should be one of the methodologies or the methods we want to use.

7:31 p.m.

Mr Darko: Mr Speaker, the last point we will make, then we sit down.

When COVID broke, we did not know anything about Zoom. At that time, Zoom had become so important; it was then the modern tool for teaching. So, Mr Speaker, if we put it that way, I do not think it will hurt anything.

Mr First Deputy Speaker: Put it which way?

Mr Shaibu Mahama: Mr Speaker, it says:

“A university that runs a law degree programme shall adapt teaching methods that impact...”.

Mr Speaker, this is generic enough. Teaching methods that impact, so whether it is Zoom, whether it is information technology (IT) savvy methodology, they are all part of the

teaching methods that will impact. So, at any particular time, any technology that is in vogue is what should impact the system. So, the preambular statement actually covers what the Hon Member is talking about. Any teaching methods that impact can include the IT that you have discussed and many others that may come in the future.

Dr F. K. Asamoah: Mr Speaker, thank you very much.

Now, even in practice, the use of digital system information technology is crucial. So, if the word “modern” will not suffice, I would suggest that we use “appropriate IT methods” as one of the methods.

Mr First Deputy Speaker: Well, if you insist, then it should be information technology.

Dr F. K. Asamoah: Yes, but appropriately, it has to at least—

Mr First Deputy Speaker: So, who determines the appropriateness of it. I just told you that we should be careful using adjectives. Can I go to court that I have been given information technology, and that it is not appropriate?

Dr F. K. Asamoah: Very well, Mr Speaker. If we want to take out the adjective, that is fine, but we need to have the IT method.

Mr First Deputy Speaker: Then, propose an amendment and let the House consider it.

Dr F. K. Asamoah: Mr Speaker, I propose that in amending clause 52, we add (a) (vi), “Information Technology”.

Mr First Deputy Speaker: Well, Hon Members, it is for the consideration of the House.

But I see “Information Technology (IT)” as a course rather than a teaching method, but it is for the consideration of the House.

Dr F. K. Asamoah: Mr Speaker, that is why we wanted to put it as “appropriate IT methodology”, so that it does not become just a tool.

Mr First Deputy Speaker: If you talk about research skills, you talk about analysis of real cases, you talk about drafting of legal documents, you talk about making oral arguments and client relations, you would realise that there are courses in the school that will lead to all these. For instance, the lecturers will realise that for one to be able to make oral argument, the course is Advocacy and Ethics; that is the course one will do, which will result into this. If we talk about drafting of legal documents, it is Land Law Conveyancing and probably Civil and Criminal Procedure. If we talk about analysis of real cases—But I see IT as a subject that they can teach rather than being a teaching method, because the rendition says “teaching methods that impact in addition to the theoretical aspect of the law, practical skills including...” So, IT is a theoretical course that you have to teach the students.

Osahen Afenyo-Markin: Mr Speaker, I think we should appreciate what the Hon Member is trying to do in context. Currently, maybe in Ghana, we are not doing it, but the universities outside of—Let me be specific. In Europe and the United States today, there are teaching programmes that are directly connected to Artificial Intelligence (AI). So, AI has been incorporated as a tool for teaching.

Mr Speaker, when I did a master’s programme somewhere, the teaching was different. Today, at a different place, the methodology for teaching has also changed, and AI tools are being applied. So, I think what he is trying to do is to act with a forward-looking mind, where the teaching method is now going to incorporate—*[Interruption]* No, the Hon Majority Leader should let us have it easy. You see, teachings of various courses in our schools are applying AI tools. So, it is not enough to say it is implied.

The Chairperson of the Committee and I have had experiences in our courts. He would recall that the Supreme Court had an occasion to deal with the provision in the Economic and Organised Crime Office Act, 2010 (Act 804) on freezing, where it got to a point that almost every account was being frozen on suspicion. The Supreme Court had to interpret the law stating that lawmakers did not intend that where you have a problem with an account, you should freeze the account. The “rule of poisonous fruit” was applied and said that if you have a particular problem with

the transaction, freeze that transaction and allow the person to operate his account. Meanwhile, people were just freezing accounts and all that.

So, Mr Speaker, I do not like this situation where we legislate and say that it is implied. Now that we have the opportunity to bring clarity, let us do so. Even if in the process of doing so we end up acting superfluous, it will bring clarity and help in law enforcement rather than saying that it is implied. I disagree. Let us add his amendment.

7:41 p.m.

Mr First Deputy Speaker: Well, Minority Leader, if that is the argument to go by, why can we not say criminal procedure, civil procedure, evidence, so that we mention the courses here. The rendition is saying that teaching methods that impacts in addition to the theoretical aspect of the law, practical skills, including research skills. And the word used is “including” which is *ejusdem generis* which means that it is not closed.

Osahen Afenyo-Markin: Mr Speaker, it is always good when there is “a big man” presiding so it is okay. I did not spot the word “including” so I rest my case and would advise my Brother.

Mr First Deputy Speaker: Very well.

Osahen Afenyo-Markin: Mr Speaker, just for our education, maybe others are behind; they are not following. To the extent that there is no definitive definition, the door is not closed so your

concerns are addressed by the use of that word “including” so I rest my case.

Mr First Deputy Speaker: Yes, so if something should be included, it should be IT skills.

Osahen Afenyo-Markin: Mr Speaker I think that would be a good compromise but the word “including” is sufficient to address those concerns. You are right.

Mr First Deputy Speaker: Very well. I will put the question.

Question put and amendment agreed to.

Mr S. Mahama: Mr Speaker, amendment proposed – Paragraph (b), line 1, *delete* “books on”.

Mr First Deputy Speaker: Hon Members, any proposed amendments?

Question put and amendment agreed to.

Osahen Afenyo-Markin: Mr Speaker, with respect, I have my amendments but I just want to take one because of time. The Majority Leader has given an indication and I gave him my word this morning so I just do not want to drag him back.

Mr First Deputy Speaker: So, let us finish clause 52 then we can go back because your amendments are not on 52.

Osahen Afenyo-Markin: Yes, that is correct. Very well.

Mr First Deputy Speaker: So, Chairperson of the Committee, (x)?

Mr S. Mahama: Mr Speaker, (x) is in the name of the Minority Leader.

Mr First Deputy Speaker: So, please do.

Osahen Afenyo-Markin: Mr Speaker, amendment proposed – *add* the following new paragraph:

“teaching and assessment methods that place particular emphasis on research skills, effective legal writing, communication skills and advocacy and these competencies shall constitute core objectives of the programme across all accredited universities.”

I so move.

Mr First Deputy Speaker: It is for the consideration of the House. Minority Leader, how is it different from the (a) because of “including”. This is because your research skill is here; analysis is here; drafting of legal documents is here; making oral agreement is here; and client relation is here; so, the word used is “including” and you are also talking about research skills which is number one.

Osahen Afenyo-Markin: Yes, Mr Speaker, I am building some consensus with the Chairperson of the Committee but we will not belabour. I would abandon it but we have agreed that the draftsman would take for instance communication skills and advocacy;

they are not mentioned, so the draftsman would add those ones.

Mr First Deputy Speaker: Yes, but few minutes ago, you were right in saying that the concluding work is “including”.

Osahen Afenyo-Markin: Mr speaker, I still maintain that.

Mr First Deputy Speaker: So, even if it is not specifically here —

Osahen Afenyo-Markin: Mr Speaker, I maintain that except that Chairperson and I have agreed that we can list some two and still keep it open.

Mr First Deputy Speaker: Very well. Drafters, you are accordingly directed. In view of that, the amendment is abandoned. So, based on the compromise, you are abandoning the amendment. Is that right?

Osahen Afenyo-Markin: It is so. Mr Speaker, so what it means therefore is that we would abandon the entire line one, two, three and a half and then rather add that “these competencies shall constitute core objectives of the programme across all accredited universities.”

Mr First Deputy Speaker: So, what will be the new rendition?

Osahen Afenyo-Markin: Mr speaker, thank you very much. You are always helping us to learn. The new rendition therefore shall read as follows: “teaching methods that impact in

addition to the theoretical aspect of the law, practical skills including...” then it lists what we have already said. After listing them, we now follow with “and these competencies shall constitute core objectives of the programme across all accredited universities.”

Mr First Deputy Speaker: Well, I will direct the drafters appropriately.

Osahen Afenyo-Markin: Very well.

Mr First Deputy Speaker: With this, I can put the question on entire clause 52.

Osahen Afenyo-Markin: Mr Speaker, it is so.

Question put and amendment agreed to.

Clause 52 as amended ordered to stand part of the Bill.

Osahen Afenyo-Markin: Mr Speaker, I have a compromise to deal with just a few of the amendments especially the one on clause 43, (iv) on page 10.

Mr First Deputy Speaker: Yes, I am listening.

Osahen Afenyo-Markin: Mr Speaker, we are dealing with first (i) of clause 33 on page 9 Amendment proposed – Subclause (1), paragraph (b), after semester *delete* “.” and *insert* the following closing phrase:

“and the Council shall ensure that inspections are conducted at least

once in each semester to ensure continuous compliance with the prescribed standards.”

Mr Speaker, I think this is very consequential by way of what we seek to achieve and the Chairperson and I have no difficulty at all. I move accordingly.

Mr First Deputy Speaker: The current rendition says “Council shall carry out inspection of accredited university at least twice during each academic year or once each semester.”

7:51 p.m.

Yes, that is what is in the existing law.

Mr S. Mahama: Mr Speaker, this is what we did. “The council shall carry out an inspection of accredited universities every three years”. That is the clause 33 (1), but it is 35 (1) in the winnowed document. The second amendment is to change this to “council” in (2). So, the inspection of the accredited universities will be every three years.

Osahen Afenyo-Markin: How long is the initial licence? Three years? The provisional licence is for three years. Because we want to maintain high academic standards, maybe if the semester is too much, we can look at one academic year. So, I am ready to amend, but we cannot accept the three years. Then it means the inspection will be once every three years. If we say that “The council shall carry out inspection of accredited universities every three years,” that would be too lazy an attempt.

As an academic institution, we want to ensure that the facilities are in place and that the right thing is being done.

So, Mr Speaker, if it is not for a semester, then we can look at the academic year. I think we can have a consensus on the academic year, but three years definitely is too much and unacceptable. So, if the Majority Leader is with me on the academic year, we may proceed. I am ready to compromise on that. Therefore, the new rendition—

Mr First Deputy Speaker: If I understand, you are in for the old rendition, which states that “The council shall carry out inspection of accredited institutions at least twice during each academic year”. You want it to be once in the academic year or once each semester.

Osahen Afenyo-Markin: No, Mr Speaker, the winnowed document, which is clause 35, has now changed it to every three years. The consensus amongst the three of us: The Leader of the House, the Chairperson, and myself, is that instead of my proposal for it to be every three years, we want it once a year. That is once every academic year. That is the consensus we have reached. But the winnowed document talks about once every three years, and we think that would be too much.

Mr First Deputy Speaker: So, the proposal is to change the three years to one year. Very well. So, Majority Leader.

Mr Ayariga: Mr Speaker, I do not know if anybody here has worked with the Ghana Tertiary Education Commission (GTEC). What is the current practice? Because we are establishing an institution like any other institution that already exists. If we make the intervals very short, we would need to be mindful of the administrative costs involved. What goes into an inspection?

Osahen Afenyo-Markin: Mr Speaker, I know that GTEC has its yearly inspection. So, even in between, they can zoom in and say that an institution is not meeting the standard, so they are going for an inspection. The institution may not have the required teaching staff, or the facilities may not be available, so they withhold accreditation for a particular course.

But I think that it is a routine for every academic year. So, I am ready to go with that practice instead of every semester, so we can make progress. I do not mind.

Mr Ayariga: I just took a briefing from a Member of the Committee. He said the actual original proposal from the deans was for an annual inspection programme. But the Members of the Committee thought that it takes three years to produce one batch. And therefore, they expanded the time frame to three years. That was what informed their proposal to make it three years.

But as it is now, I am of the same view that for quality assurance, it is important that the inspection is annual. I think an annual inspection would provide early signals.

Mr First Deputy Speaker: Yes, because the fact that you produce them within a period of three years does not mean you are not continuing. Every year, students will pass out. New ones will come. So, if it is possible, doing the inspection once a year is in order.

I will then direct the drafters to also tidy it up. Instead of three years, let it be once a year.

Osahen Afenyo-Markin: Mr Speaker, the new rendition, just for the draft person to pay attention, will be “The council shall ensure that inspections are conducted at least once every academic year to ensure continuous compliance with the prescribed standards”. But that is the essence of the inspection.

Mr First Deputy Speaker: Leader, if you do not put “to ensure”, it does not—That is the purpose of the inspection anyway.

Osahen Afenyo-Markin: Mr Speaker and Majority Leader, I do not know how to translate this in English, but *ahunu bi da nti a*.

Mr First Deputy Speaker: So, can there be an inspection which will not ensure compliance with the standards?

Osahen Afenyo-Markin: Mr Speaker, the essence of the inspection is to ensure that firstly, the university is complying, and secondly, the standards are being maintained. So, for me, my style in drafting would be to be as

superfluous as possible, because that would help with the clarity.

Mr Speaker, it is because of all the things I have seen in our courts. Maybe I can only speak for myself, but you know that sometimes when we leave it hanging—

Mr First Deputy Speaker: That is why I did not intend to come out with a rendition, but I am directing the drafters.

Osahen Afenyo-Markin: Mr Speaker, you can help me.

Mr Ayariga: If we are looking at clause 35 of the new document, go to subclause 2. “For purposes of subsection 1, the council shall designate an officer of the council as an inspector to inspect an accredited university to ensure compliance.”

Osahen Afenyo-Markin: Mr Speaker, the Majority Leader should know the international rules on war criminals. If the man is done, and he says it is all right—

Mr First Deputy Speaker: So now, there is another amendment to clause 33 standing in your name.

8:01 p.m.

Osahen Afenyo-Markin: Mr Speaker, I shall proceed. Mr Speaker, with respect, that is clause 33 (4), a new sub-clause which is very important. Mr Speaker, with this amendment, I checked the GTEC regulations, and I just lifted it straight away. So, it is nothing new.

“(4) The Council may conduct additional inspection where;

(a) credible information suggests a material breach of standards or

(b) a significant complaint has been received.”

Mr Speaker, I so move.

Mr First Deputy Speaker: Even with the way I am directing it to the draftspersons, the essence is that where we say “every year”, the draftspersons could say “at least once a year”. So, once it is “at least once a year”, any time there is an issue, they could go in.

Osahen Afenyo-Markin: Mr Speaker, that is a different situation. That one will follow a routine, but this one is to create an exceptional situation that would empower the Council to do the inspection. But I still leave it with them to look at it —*[Interruption]*— We should have it?

With the amendment from GTEC regulations, they have conditions, so that maybe if there is a complaint, and it may not be there, they put it in there to safeguard. *[Interruption]* It is not the same. Otherwise, this soldier would come in and arrest us. He is now reading everything.

Mr Speaker, so let us maintain this. It helps with the quality assurance that we all need. Thank you, Mr Speaker, you may put the Question.

Question put and amendment agreed to.

Mr First Deputy Speaker: Yes, item number 17 (iii).

Osahen Afenyo-Markin: Mr Speaker, with respect, clause 40, it appears 42 in the winnowed document. Amendment proposed - Line 3, after the word “has”, *delete* “experience in accounting for a period of not less than 10 years” and *insert* “appropriate qualification and relevant experience as prescribed by Regulations”.

Mr Speaker, I think this would enable the administration to take the appropriate decisions on which qualification is required. The experience and maybe other relevant qualifications, and they would also have the opportunity to prescribe the same in their regulation. Instead of saying “experience in accounting for a period of not less than 10 years”.

Mr Speaker, “experience in accounting for not less than 10 years”, has not prescribed the academic qualification in addition. It only talks about somebody practicing in that field for 10 years. It has not talked about whether the person should be chartered, or should have Masters in Accounting or Finance. So, if we now make it open by saying “appropriate qualification and relevant experience”, then the Council can use Regulations to determine. Like what we do in Parliament, we create our own scheme of service here, where we state on each vacancy that the Board will

determine what is expected of a particular vacancy. For example, it could be that they should have done two years, or five years, should have been a procedural clerk, or an analogous experience, and then that space will be created. But if we legislate and cast it in stone and iron like this, there will be a problem at implementation.

Mr Speaker, I so move.

Mr First Deputy Speaker: Minority Leader, then what of the legislation in respect of lawyers, because they specifically mention lawyers with a minimum experience at the Bar and this is also mentioning accountant with a minimum experience.

Osahen Afenyo-Markin: Mr Speaker, the difference here is that the language used, “experience in accounting”, Mr Speaker, I am paying attention to language. If it had said “an accountant”. *[Interruption]* No, it does not say so.

Mr First Deputy Speaker: It says so. Read the rendition.

“A person qualifies to be appointed as an account officer of the law degree programme of the university. If that person:

(1) is an accountant”

Osahen Afenyo-Markin: Mr Speaker, does the Leader have the winnowed document? Then he can read it. Clause 42, the title is “Account Officer of Law Programme.”

Mr Ayariga: Mr Speaker, Clause 42, reads:

“A person qualifies to be appointed as an accounts officer of a law programme of a university, if that person is an accountant and has experience in accounting for a period of not less than five years.”

They even amended it to five.

Mr First Deputy Speaker: Maybe what we have to say is a “Chartered Accountant” because that is the profession.

Mr Ayariga: So, you are asking whether it has to be a Chartered Accountant, *et cetera*. But “Chartered Accountant” is a specific qualification, and not all accountants are chartered. They may be accountants, but they are not Chartered Accountants. I do not think the intention is to restrict it only to Chartered Accountants.

Osahen Afenyo-Markin: Mr Speaker, I would want to have some consensus with the Leader. It is because of this ambiguity that I am saying we should not legislate on it, but rather ask for appropriate qualifications and relevant experience.

Mr First Deputy Speaker: So, Majority Leader, you are aware of the difficulty your rendition may create. With the existing wording, it means that to qualify, one must be an accountant. If you are not an accountant, you are out. In addition, you must have experience in

accounting. If you are an accountant but do not have experience in accounting, you are also out.

Now, your rendition proposes “appropriate qualification.” Who determines whether a qualification is appropriate or not? And when you say “relevant experience,” relevant experience in what — finance or economics?

As it stands, the current wording points irresistibly to one conclusion: that one must be an accountant, and the experience must also be in accounting, in order to qualify. But if you say “relevant experience,” you are giving someone the power to determine the qualification that is relevant or appropriate.

Osahen Afenyo-Markin: Mr Speaker, for me, I was drawing from experience where an institution has to recruit and, through its own regulation, is able to set certain minimum qualifications. My view is that we should not legislate on this and give specifics. Rather, we should allow internal regulations to look at circumstances and draw the scheme or the guidelines where such a vacancy occurs. It is the reason I humbly put in the phrase “appropriate qualifications and relevant regulation as prescribed by regulation.”

Mr First Deputy Speaker: Having served on the Committee on Subsidiary Legislation for some time; I must say that this could create a difficulty. If the Parent Act uses the phrase “appropriate

qualification,” and the Regulation later goes on to specify “accounting”, then you may be departing from the Parent Act.

8:11 p.m.

Osahen Afenyo-Markin: Mr Speaker, should we therefore abandon the “appropriate qualifications” and rather maintain “relevant experience”? Would that help? I also understand what you mean, that the first definition is accountant. So, if the person is an accountant, that is the minimum. Introducing appropriate qualification will create a problem. I agree with you and I am ready to yield to that and abandon “appropriate qualification”. But I am also asking, in that sense, can we keep the relevant experience there for the draftsman to—

Mr First Deputy Speaker: No. The problem is that we cannot introduce “relevant” before “experience”, in the sense that they are specifically telling us experience in accounting.

Osahen Afenyo-Markin: Mr Speaker, you have made your case. I yield to you. So, let us maintain the rendition as it is.

Mr First Deputy Speaker: You have already moved amendment in (iv), or the Hon Member is now coming to move (iv)?

Mr Shaibu Mahama: Mr Speaker, he has abandoned it.

Clause 43 — Admission examination and entrance standards

Osahen Afenyo-Markin: Mr Speaker, I beg to move: add the following new subclause:

“(#) The minimum class requirement for admission to the professional Law Practice Training Course shall be determined and published by the Council and shall be binding on all universities and no university shall independently vary that requirement.”

I would want to further amend my amendment and *delete* class.

Mr Speaker, I would even want to further amend this and end it at “universities”. So the rendition of the new subclause, shall read:

“The minimum requirement for admission to the professional law practice training course shall be determined and published by the council and shall be binding on all universities.”

The additional “and no university shall independently vary that requirement.”, I *delete* them because that would be of no consequence.

Mr First Deputy Speaker: Hon Minority Leader, I thought the other time you said you knew of people who have Third Class but they are good lawyers? Why are you introducing class?

Osahen Afenyo-Markin: That is why I have deleted it. Mr Speaker, you are not paying attention to me. I have removed class. The last time, I promised that I would amend it when we get there. So I have just sought your leave to amend and *delete* “class”.

This is the new rendition. I have *deleted* “class” from what is advertised because I gave my word to you the last time:

“The minimum requirement for admission to the professional law practice training course shall be determined and published by the council and shall be binding on all universities.”

I am abandoning the rest of the phrase and deleting all of that complaint. This shall be the new subclause, Mr Speaker.

Mr First Deputy Speaker: So probably we can say,

“The minimum entry requirement for admission into the professional law practice training course shall be determined and published by the Council.”

Osahen Afenyo-Markin: Mr Speaker, they are bringing— It is binding. It is consequential, so no need. I take your rendition.

Mr First Deputy Speaker: Then I will adopt that rendition.

Osahen Afenyo-Markin: I will adopt it as my own.

Question put and amendment agreed to.

Clause 43 as amended ordered to stand part of the Bill.

Mr Shaibu Mahama: Mr Speaker, save to say that “course” should be *deleted*. It should be “professional law practice training”.

Mr First Deputy Speaker: Draftspersons, take note of it.

Osahen Afenyo-Markin: Mr Speaker, with respect—

Mr First Deputy Speaker: We will move your last amendment in (v).

Clause — Curriculum for Bachelor of Law degree programme

Osahen Afenyo-Markin: Mr Speaker, I beg to move: *add* the following new subclauses:

“(#) The curriculum developed under subsection (1) shall prescribe uniform compulsory courses to be offered by all accredited universities and no university shall substitute or omit such courses.

(#) The curriculum shall require all students to undertake courses in information technology and the law as compulsory components of the programme.”

Mr Speaker, let me shed some light on this. I am particularly introducing this sub-clause with emphasis on compulsory

Information Technology (IT) training because our world is moving into an Artificial Intelligence (AI) space. Just last week, a very senior lawyer told me that with an AI tool that his law firm has deployed, the firm was able to deal with some case briefs, summarising certain decisions and it is really enhancing efficiency in the law firm.

Mr Speaker, many of these courses that are being run by universities in the western world are now tailored in a manner that allows a full application of AI. We are behind. This law is being enacted not for today, but for tomorrow. So, Mr Speaker, *Ab initio*, it is important that we emphasise this so that our future lawyers would also be brought up to speed. Mr Speaker, today, students who are taking international affairs and diplomacy programmes abroad are studying this programme with AI models as integral part of the programme.

There is AI diplomacy. Whereas our Minister for Foreign Affairs in Africa meets a counterpart in Europe and he is now dealing with briefs, the counterpart there is aided by AI. He is approaching them with a full AI tool aiding his diplomacy. That is a reality. But here, our Minister for Foreign Affairs would have to read and read papers. But their colleague has been trained with the use of AI tools for his diplomacy. All the officers who are his technical staff have gone through education that has deployed AI as an integral part of that training. If we do not introduce it now, we will have a challenge.

In any event, Mr Speaker, just for our information, so far, none of the universities in Ghana, be it private or public, has a first degree programme in AI. It is unfortunate.

8:21 p.m.

AI tools are not being deployed in our universities on a scale that, at least in the minimum, we will say that we are preparing our kids to meet future market demands. So, Mr Speaker, it will be the first —

Mr First Deputy Speaker: So, are you talking about introduction of AI at a bachelor's degree level of Information Technology?

Osahen Afenyo-Markin: Yes, Mr Speaker, it forms part of —

Mr First Deputy Speaker: Have you looked at clause 48?

Osahen Afenyo-Markin: I looked at clause 48 and 49 and it is also captured here. But I felt that since this is dealing specifically with the curriculum, why not first mention it? If we mention it here and subsequently, they do not even appear, we would have addressed it.

Mr First Deputy Speaker: I am saying so because if we look at clause 48, it says:

“The minimum requirement for the award of Bachelor of Law degree is the satisfactory completion of the number of course of study that amount to a

number of credit hours that the Council determines, taking into consideration the general policy of the university in which the law degree programme operates regarding the number of credit hours required for completion”.

For instance, whether a person is reading Law in the University of Ghana or not, the person will do appropriate technology —

Osahen Afenyo-Markin: Mr Speaker, the way it has being captured in (d), I think reading it together with what I am putting in the curriculum, let me abandon the second leg of it and just maintain the first leg. I think the amendment that the Winnowing Committee has done in (d) addresses it. It is clear enough. “Training in Information Technology”. So, Chairperson, I am abandoning it because of (d). So, let us just maintain the first part of the amendment. That is it.

Mr Ayariga: Mr Speaker, I thought also that the winnowed version sets out the content of curriculum. So, I am at a loss where he wants us to insert the curriculum developed under subsection 1 “shall prescribe uniform compulsory courses to be offered by all accredited universities and no university shall substitute ...”

Osahen Afenyo-Markin: I have cancelled subclause 1.

Mr Ayariga: “The curriculum developed under subsection one shall prescribe uniform compulsory courses to

be offered by all accredited universities.”. I think the idea behind clause 1 is to set a framework but leave room for different universities. Now, let us take, for instance,

The curriculum for a Bachelor of Laws programme shall provide

- (a) instructions that are necessary for the impartation of a particular subject matter or skill,
- (b) practical and theoretical training in the law,
- (c) an opportunity to take elective courses,
- (d) training in information technology,
- (e) pre-determined course contents for the courses offered, including relevant statutes, cases, articles, books, topics in the course,
- (f) instructions on the ethics *et cetera*.

Mr Speaker, if we look at all these, it will be difficult to now see at the end that “The curriculum developed under subsection 1 shall prescribe uniform compulsory courses to be offered by all accredited institutions”. Because what the Law normally will do is to set minimum courses that must be offered.

Osahen Afenyo-Markin: The angle I was picking was in respect of the

standard, the minimum requirement. The uniform standard that I was looking at is quite problematic at the degree level because some universities may want to offer international law jurisprudence as part of their non-compulsory courses. Others may have emphasis on AI law or something. So, demanding a uniform standard across both will become difficult.

Mr Speaker, I therefore abandon it.

Clause 53 – Duration of Bachelor of Laws degree programme

Mr S. Mahama: Clause 55 of the winnowed document. That has to do with duration of the Bachelor of Laws degree programme. Amendment proposed, *delete* and *insert* the following:

“Duration of Bachelor of Laws degree programme

53. A university that runs a law programme shall determine the duration of a Bachelor of Laws degree programme in accordance with the statutes of the university.”

Osahen Afenyo-Markin: Mr Speaker, I support the Chairperson because some universities may choose to treat their Bachelor of Law programme as a post-first degree programme and deal with it for even one year. Like I said, in the UK, post-first degree Law programmes are for a year. We have other universities that have two years’ intensive studies as first degree. They run four times in a year. The University of

Buckingham runs four times in a year. There are short breaks but no long summer breaks. So, in two years, one earns their first degree. The New York Bar recognises being called to the bar there while others are doing three years in the UK.

To the extent that we have qualified it to say that “in accordance with the statutes of the university”, it means that such a duration or however they would want to describe their law programme, be it a first degree programme, post-first degree programme or whether they are going to have different streams of the same LLB, should be in their statute. I think that is good. Mr Speaker, I support it.

Question put and amendment agreed to.

Mr S. Mahama: Mr Speaker, in view of the Leader’s — would he want to abandon xii?

Osahen Afenyo-Markin: Mr Speaker, this is not an abandonable clause. The Chairperson has not read it properly. I know the Majority Leader is reading it carefully.

The whole essence of this is to enable someone to have a Law degree that may not necessarily qualify him to do the bar.

8:31 p.m.

Mr Speaker, if we read carefully:

“A university shall structure its Bachelor of Laws degree

programme to include a minor field of study in another discipline to enable a student who is subsequently disqualified from professional legal training, to complete a recognised qualification in that minor field.”

Mr Speaker, so somebody is doing law with French, law with finance; it is a combined major, but in the end, having the law degree would not qualify the person to do the professional course, but the person just needs the law degree with that combined major to pursue another field. That is my objective.

Mr First Deputy Speaker: So, Hon Minority Leader, I do not think there will be a need for this, in the sense that people do combined major, so once you are able to satisfy the entry requirement into professional law practice training, you do not have a problem.

Osahen Afenyo-Markin: Mr Speaker, then perhaps I would end it in another discipline —

Mr First Deputy Speaker: No, I am saying that you do not need this particular provision, because remember, the Council is going to prescribe some courses. Once you are able to complete it, you are qualified to enter the professional training course, which enables you to go and write the Bar Examination. So, whether you are doing French, economics, or whatever, once you are able to satisfy those requirements, the way is open for you to enter law school. But this law is not interested in regulating other courses at

the university. They are only regulating the law. What you will have to do to be able to qualify for the next stage of the university. So, why are we going to put in this law, “other courses apart from the law courses”, when this law is a Legal Education Reform Bill?

Osahen Afenyo-Markin: Mr Speaker, I thank you for your guidance, but this is a major policy matter that, if the Attorney-General (AG) were to be here, it would have helped my cause. Mr Speaker, you can speak to it as a matter of law, but the AG can speak to this as a matter of policy. Mr Speaker, I am looking at it with a different eye. We are talking about minimum qualification, and that explanation you gave stands well with me, because the Legal Education Reform Bill, which we are looking at, seeks to regulate professional law training and tries to give a background on how to get there. But, Mr Speaker, situations where we are looking at others who would want to come with a combined major, in all the minimum requirements, we have not talked about a combined major. And I feel that — I would not abandon; I would want us to flag it.

I would plead with the Leader of the House that the AG, this is the third time we are considering this Bill without him — though the Standing Orders specifically do not prohibit us from proceeding, just because the Attorney-General is not here. But for policy purposes, he is the Sponsor. We have got to a stage where he must find time for this House to shepherd this Bill.

So, Mr Speaker, I would not want to delay this. I would flag it and pray that he comes the next time so that we can deal with this. Because I feel strongly about the point I have here. So, I will leave it for him to come join us.

Mr Ayariga: Mr Speaker, “A university shall structure its Bachelor of Laws degree programme to include a minor field of study in another discipline.”

Now, we are seeking to regulate law degree programmes. All that we have done so far is to prescribe a mechanism for regulating law degree programmes. He is saying that the same university that is regulating or providing the law degree programme should also develop a minor field of study. What he is pushing us to do is to regulate that minor field of study, something that we do not want to be our concern. That is not our concern.

Mr First Deputy Speaker: I think the Minority Leader got it, so he will abandon the amendment.

Mr Ayariga: Please, let us leave this. We are focused on the law degree programme. Because when we add on other things, we will distract them. We will increase the cost for the student because this minor field of study is going to be an additional cost to the student, and it is going to be additional time of instruction and all that will just waste everybody's time. So, let us leave it the way it is.

Mr First Deputy Speaker: I will deem it abandoned.

Osahen Afenyo-Markin: Mr Speaker, consider it flagged. Mr Speaker, you know, I am not a difficult person, so I would not pursue it for now. Let us proceed. We will come back. I want to be double sure of something.

Mr First Deputy Speaker: Let us deal with it now so that we do not come back. We moved above clause 50, but because of you, we came back to clause 33. Do you understand? Hon Minority Leader, assuming you are —

Osahen Afenyo-Markin: Mr Speaker, granted as prayed.

Mr S. Mahama: Mr Speaker, Clauses 54 and 55 are consequential amendments, and so we can take all together. It is just —

Mr First Deputy Speaker: Yes, it is true. It is a consequential amendment.

Question put and amendment agreed to.

Clause 54 ordered to be deleted from the Bill.

Clause 55 — Retention, academic disqualification and graduation policies

Mr First Deputy Speaker: Chairperson of the Committee, it is consequential.

Mr S. Mahama: Mr Speaker, I beg to move, opening phrase, line 1, *delete* "A person in charge of the law degree programme of a university" and *insert* "A university that runs a law

programme" and in line 3, after "law", *delete* "degree".

Question put and amendment agreed to.

Mr S. Mahama: Mr Speaker, I beg to move, Paragraph (b), line 2, *delete* "Bachelor of Laws degree" and *insert* "law".

Question put and amendment agreed to.

Clause 55 ordered to be deleted from the Bill.

Clause 56 —Evaluation of students for advancement and retention purposes.

Mr First Deputy Speaker: Chairperson of the Committee?

Mr S. Mahama: Mr Speaker, I beg to move, *delete* and *insert* the following:

"Evaluation of students for advancement and retention purposes"

56. A university that runs a law programme shall assess each law student on the basis of performance in the courses pursued for purposes of retention or disqualification."

8:41 p.m.

Mr First Deputy Speaker: Hon Members, it is for consideration.

Any further amendments? I will put the question.

Question put and amendment agreed to.

Mr First Deputy Speaker: Yes, clause 56 (xvii).

Osahen Afenyo-Markin: Mr Speaker, I do not know how this can be handled. But I would want to raise a practical problem our students face. Maybe after I am done, Colleagues may come up with a rendition, or you, Mr Speaker, may assist.

Mr Speaker, we are talking about assessment for the purposes of retention or disqualification. In Ghanaian universities, we should ask ourselves, when are results released? Sometimes one finishes a semester and is completing the next semester and their result for the previous semester is not even out. One goes for a long vacation, three-month vacation, one comes and the results are not released and one is supposed to continue. So, I do not know how we can legislate on this, but the academia, our professors, must ensure some efficiency.

Mr Speaker, the way students are treated in Ghana, I am sorry, but where some people studied, like the Hon Majority Leader who was at Harvard—

Mr First Deputy Speaker: Hon Minority Leader, is it not the case that that is regulated by the statutes of the university?

Osahen Afenyo-Markin: Mr Speaker, the statutes say nothing. I have

had a war with our universities before. They do not capture it in the statutes. Mr Speaker, permit me on this. We may not perhaps legislate on this, but we may be sending them a signal. In other universities abroad, before the new semester starts, the previous semester assessment would have been out. Lecturers will mark and publish results way ahead of time. Here, even where one wants to seek for remarking, when one wants to follow up on their result, it is difficult. So, something must be done. We should at least prescribe, put in a line or two that says that the outcome of assessment of a student must be released at least two weeks into the new semester. I cannot stand here and say lecturers are lazy. It would be wrong on my part to say so. But I am saying that we do not seem to have sufficient efficiency in terms of how students are assessed when their results are released. It comes too late, especially in our public universities.

Mr First Deputy Speaker: Hon John Darko, your name readily comes to mind as a lecturer. Are the marking and all those things regulated by the statute of the university?

Mr John Darko: Yes, Mr Speaker. Generally—**[Osahen Afenyo-Markin:** Tell us when you people release your results]. *[Laughter]* Mr Speaker, they are generally regulated by the statute of the university. And I know as a matter of fact that at GIMPA—**[Osahen Afenyo-Markin:** Do you comply?]**]** Yes. I release my results way earlier before the semester commences.

Mr First Deputy Speaker: I also know as a matter of fact when we are enacting the Education Regulatory Bodies Act, 2020 (Act 1023)—

Mr John Darko: Mr Speaker, you are pitching me against my Leader—

Mr First Deputy Speaker: No, we just want the factual situation. You see, when it comes to certain things, the universities have autonomy so it is not every aspect—Above all, our concentration here is on only legal education, nothing more, nothing less.

Osahen Afenyo-Markin: Mr Speaker, if you have a son who attends a public university, semester one, you have paid fees, everything. He starts semester two, you call him, my son, where are your results for first semester? Daddy, they have not published them. Then at the tail end of semester two, while taking exams for semester two, they now publish them in tots—

Mr First Deputy Speaker: I am not justifying that act—

Osahen Afenyo-Markin: Mr Speaker, I am speaking to certain ears and I want those ears to hear us.

Mr First Deputy Speaker: Then propose a rendition.

Osahen Afenyo-Markin: Yes, that is what I am saying that you should assist me because I am quite exhausted. Mr Speaker, I will try. You are always pushing me to learn.

Mr First Deputy Speaker: I thought you were going to move your amendment in Roman numeral xvii.

Osahen Afenyo-Markin: Mr Speaker, we dealt with that.

Mr First Deputy Speaker: So consequentially, it is abandoned. So then let me put the question on the entire clause 56 first.

Osahen Afenyo-Markin: No, Mr Speaker. It is something we are dealing with. You wanted me to deal with the assessment of the student. I am saying that let the draftsman put in “at least two weeks into the new semester”, because Mr Speaker, we want there to be certainty.

Mr First Deputy Speaker: So, Hon Minority Leader, if you put it in the Legal Education Reform Bill, what of those students who are not offering the legal education?

Osahen Afenyo-Markin: Mr Speaker, for now, what we have before us is legal education.

Mr First Deputy Speaker: So, I am pleading with you. This is not where, if there is anything like that, it should be placed—

Osahen Afenyo-Markin: Mr Speaker, look at the reverse logic. Are you saying also that we should leave it open?

Mr First Deputy Speaker: No, if it is in their statutes, but it is not being complied with— It is one thing complying with the law and it is another thing not complying with the law.

Osahen Afenyo-Markin: Mr Speaker, I have seen quite a number of statutes of our universities—

Mr First Deputy Speaker: I have also seen statutes—

Osahen Afenyo-Markin: Mr Speaker, they do not enact in their statutes that results—It is not.

Mr First Deputy Speaker: Well, let me hear from Prof Hamza. He is also a lecturer. Prof Hamza, do you have this in your statutes?

Osahen Afenyo-Markin: Mr Speaker, do not pitch me against your lecturers in this Chamber. They know what I am talking about. Hon John Darko knows what I am talking about. They do not publish results and even when they publish, it is in tots. Parents here should wake up on this matter and talk. They know.

Mr First Deputy Speaker: That is why I am saying, Hon Minority Leader that, non-compliance of the law does not mean we should continue making more laws.

Yes, Prof Hamza?

Prof Hamza Adam: Thank you so much, Mr Speaker.

I think the Hon Minority Leader may probably have to consider his position on the assessment. Generally, the universities have their timetables. There are times for examinations, then we have times for submission of results and times for academic meetings. Then time for publishing of results. So, every university has a well-defined structure that they work with. Some of these things are just administrative lapses. For example, if a head of department or a dean sits on their responsibility, then you may find some of these isolated cases occurring.

So, I do not think there is a need to legislate on this. We rather will have to probably fashion that out in a Legislative Instrument (L.I.). But to legislate on this, I think that we are going to tie the hands of the universities and that will take the independence of the academic institution off their hands. So, I do not think there is a need for us to legislate this. Let us be flexible so that the universities can have their ways of going through their examinations.

I thank you, Mr Speaker.

8:51 p.m.

Mr First Deputy Speaker: I will put a Question on entire Clause 56.

Question put and amendment agreed to.

Clause 56 as amended ordered to stand part of the Bill.

Clause 57 — Disqualification for failure in assessment

Mr First Deputy Speaker: Chairperson of the Committee?

Mr S. Mahama: Mr Speaker, I beg to move, *delete* and *insert* the following:

“Disqualification for failure in assessment

57. (1) Where a university that runs a law programme is satisfied that a student is unable to complete the law programme successfully, the university shall disqualify the student from continuing the law programme.

(2) A university that runs a law programme shall

(a) ensure the prompt marking and early release of the results of assessments by law lecturers to ensure that the evaluation of student performance is done fairly and adequately; and

(b) submit a detailed report of the performance of all law students to the Council for purposes of the evaluation within a time indicated by the Council.”

Mr First Deputy Speaker: Any proposed amendment to the Chairperson’s amendment?

Question put and amendment agreed to.

Clause 57 as amended ordered to stand part of the Bill.

Clause 58 — Repetition of Courses

Mr First Deputy Speaker: Chairperson, we will stop at clause 59.

Mr S. Mahama: Mr Speaker, on clause 58, there is a consequential amendment on page 13. Amendment proposed – Subclause (1), line 1, *delete* “A person in charge of the law degree programme of a university” and *insert* “A university that runs a law programme”.

Mr Speaker, I so move on page 13.

Question put and amendment agreed to.

Clause 58 as amended ordered to stand part of the Bill.

Clause 59 — Academic Freedom

Mr First Deputy Speaker: Chairperson of the Committee?

Mr S. Mahama: Mr Speaker, consequential amendment. Amendment proposed – Opening phrase, line 1, *delete* “A person in charge of the law degree programme of a university” and *insert*

“A university that runs a law programme”. I so move.

Question put and amendment agreed to.

Mr First Deputy Speaker: Yes, clause 59, (xxi).

Mr S. Mahama: Mr Speaker, consequential amendment. Paragraph (a), line 1, *delete* “members” and *insert* “lecturers” and after “law”, *delete* “degree”. I so move.

Question put and amendment agreed to.

Mr First Deputy Speaker: Hon Members, any further amendment to clause 59?

Clause 59 as amended ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, we have sat in excess of five hours. In the circumstances, I have the authority to adjourn the House and the House is accordingly adjourned till – oh, very well. That brings us to the end of the Consideration Stage for today.

Yes, Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, if I heard you correctly, you indicated that because we have done more than five hours, there will be no requirement for the Leader of Government Business to move the House for the purpose of adjournment. But Mr Speaker, the Leader of Government Business made a promise to this House. His promises must be sacred and he must live up to those promises. Mr Speaker, when the Government, through a press conference, announced reduction of producer price of cocoa, he promised this House that the Minister for Finance will come here with a policy document. Mr Speaker, that has not been done.

ADJOURNMENT

The House was adjourned at 8:56 p.m. till Wednesday, 25th February, 2026, at 2:00 p.m.

Editor's Note

This *Official Report* was adopted by the House on 4th March, 2026.